

# PARAGUAY SUPPLEMENTAL FIELD OFFICE MANUAL FOR PERSONNEL AND OPERATIONS

January 2021



PARTNERS *of the* AMERICAS  
Connect • Serve • Change Lives

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# 1. Introduction

## 1.1 Welcome to Partners

### Welcome to Partners of the Americas!

The field office manual has been prepared specifically for Partners of the Americas employees in Paraguay. It will introduce the organization and information on the rights and obligations the employee has towards the Paraguay Field Office and, at the same time, about the rights and obligations that the Paraguay Field Office has towards the employee. This Manual is therefore a basic information tool for employees working in the Paraguay Field Office.

In this book we try to explain the important topics related to financial, personnel and operational management. The Paraguay Field Office expects that all employees understand and implement all the policies and procedures found within this manual. It is the responsibility of each employee to know the policies and procedures, or when necessary, request clarification. All employees will be required to sign a [certification form](#) confirming that they have reviewed all the policies and that they will adhere to the standards set forth within this document.

When the Paraguay Field Office deems it appropriate to modify the policies and procedures, it will update the necessary parameters which will subsequently be disbursed to each employee in a timely manner. We ask you to contact your immediate superior or the Administrative and Financial Management if you have any doubt about your position or your working relationship with the Partners Paraguay, as many times as necessary.

You are the lifeblood of Partners of the Americas and, as such, we want you to find an interesting and rewarding experience in your work environment.

With all due respect, I wish you every success.

John McPhail, President & CEO



## 1.2 Objective and Scope

The purpose of this manual is to help its users to work in accordance with the rules and philosophy of Partners, adapted to the Labor Code in Paraguay, thus becoming a consultation tool with unified criteria and provide a general framework and standardized set of policies and procedures for financial and personnel management in Partners of the Americas' Paraguay Field Office, herein after referred to as **"Partners Paraguay"**. This supplemental manual addresses country specific laws, regulations and policies in accordance with Paraguayan law.

The information presented here contains the main standards of conduct for Partners Paraguay and the most common legal regulations for the workplace.

Partners Paraguay is expected to comply with all the policies and procedures set forth in this manual and encouraged to seek clarifications if questions arise. Partners Paraguay (including sub-offices), must maintain a printed copy of the manual for reference.

## 1.3 Management Control – Roles and Responsibilities in Headquarters

The Chief Financial Officer (CFO) is the authority on the Partners Paraguay supplemental manual, or in absence of the CFO, an individual designated by the President and CEO. Partners Paraguay is encouraged to provide input, suggestions and corrections, but may not alter or change any part of this manual.

This manual will be reviewed annually and updated (if applicable) to reflect current circumstances as well as new policies and procedures. Partners Paraguay will be notified of updates by e-mail.

## 1.4 Implementation Control – Roles and Responsibilities in Paraguay

This manual is for the use and knowledge of all employees without exception. The contents of this one as well as its updates will be notified to each employee for its understanding and

its application. It is the responsibility of all employees to know, understand and apply the contents of this manual in its entirety.

It is not permitted to reproduce the manual for reasons as the consultation of it is exclusively reserved for the employees of Partners Paraguay. In the event that the employee has suggestions and recommendations related to the manual, these remarks must be communicated in writing to the immediate superior so that he/she can forward it to the management.

Enforcement of this supplemental field office manual will be the responsibility of the positions below.

- Project Director (PD) (Field Office Director or Chief of Party, etc.) – This individual will lead field office operations director in country. He/she is responsible for overall project/program management and the operations of the field on a day to day basis.
- Field Office (FO) Finance Manager (Admin Manager, Admin & Finance Assistant/Manager) – This individual is the person responsible for all the finance operations and internal controls for the in-country field office. This individual is responsible for data entry, overseeing and reconciling accounts.

## **2. Internal Controls**

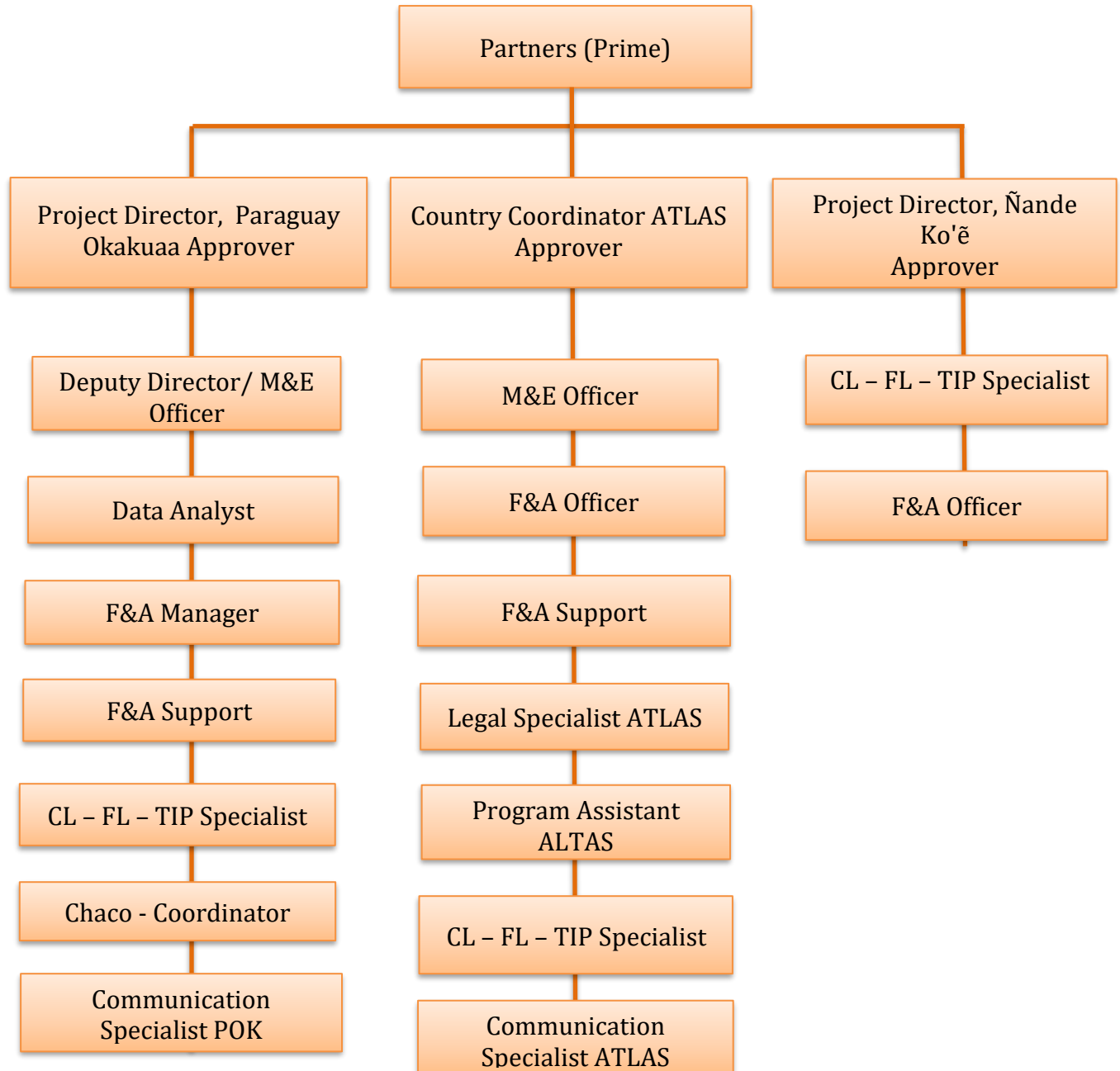
### **2.1 Purpose and Scope**

The purpose of Internal Controls is to provide reasonable assurance that the following objectives are being accomplished:

- Reliability and integrity of information
- Compliance with policies, plans, procedures, laws and regulations
- Safeguarding of assets in Partners Paraguay
- Economical and efficient use of resources
- Accomplishment of established objectives and goals for operations and programs

## 2.2 Approval Authority

The flowchart below outlines the approval authority matrix at Partners Paraguay. The FO Finance Manager, supported by the PD, has responsibility for enforcing approval authority. Partners HQ has approval over the PD and must approve his/her payments, etc. In accordance with the procurement policy, all transactions valued at \$1,000 USD or more will automatically need to be approved by Partners HQ.



### **2.2.1 Responsibilities of Approval and Review Authorities**

It is critical that approval authority holders not only understand what their authority levels are, but also what their responsibilities are in using their authority. The responsibilities for both approval authority holders and financial review are outlined below.

By approving an expenditure, commitment or payment, the signer is confirming that:

1. The expenditure is necessary, appropriate and reasonable
2. The item is not currently in stock or available;
3. The technical specifications are correct and adequately detailed;
4. The required forms are complete;
5. Funds are available within the budget;
6. The expenditure is in compliance with Partners HQ's policies and procedures.

Financial review is a compliance check and not an approval authority. The primary purpose of financial review is to ensure that all financial and compliance aspects of the commitment are considered. The FO Finance Manager, when signing off, is confirming that:

1. The expense has been authorized by the appropriate authorizer;
2. The expenditure is within budget guidelines;
3. The expenditure is in compliance with Partners HQ and donor policies;
4. The expense has been coded correctly;
5. The calculations are correct;
6. The required supporting documentation is in order and adequately explains the transaction; and
7. All payments, whether by check, wire transfer, etc. are being paid to the party which appears on the procurement records and/or other approval documentation. Checks or transfers may not be made out to third parties or any Partners' employees (either Partners HQ or Partners Paraguay) to be cashed on behalf of the vendor. Any exceptions must be approved in writing by the CFO or President.

8. All expenses are recorded at full cost and not net of taxes, etc.

An original signature on an original document is the required method of documenting an approval or review. Upward approval is required for all transactions. Under no circumstances may an originator approve its own expenses, including the PD.

When the authority holder is not located at Partners Paraguay or where an approval is required due to a temporary absence (on travel, vacation, sick, etc.), the next level of authority in that office should be sought for approvals that the absent party would have normally made.

When the authority holder is permanently located outside of the office where an approval is required or is the only one authorized for a particular approval and is out of office, the document to be signed should be printed, signed and scanned. The scanned copy should be sent back to the office requiring the approval. The scanned document must then be printed and attached.

## **3. Monthly Reconciliation of Accounts**

### **3.1 Reconciliation of Assets, Liabilities & Cash Accounts**

All the assets and liabilities accounts (i.e. cash, accounts receivable, accounts payable and other balance sheet accounts) must be properly reconciled on a monthly basis. Evidence of the reconciliation should be maintained in Partners Paraguay and be sent monthly to Partners HQ. This evidence should include all supporting schedules prepared by the FO Finance Manager and approved by the PD prior to the submission of the reports to Partners HQ, or presentation to the auditors during the audit process.

All financial reports for both Partners Paraguay and all sub-awardees must be submitted to Partners HQ by the 7<sup>th</sup> of the following month. If the 7<sup>th</sup> of the month falls on a holiday or weekend, the submission deadline is the last business day prior to the 7<sup>th</sup>. Compliance with this timeline is critical to ensure expenditures are recorded in the correct month. If there are any delays or issues with meeting the deadline, field staff must immediately notify Partners

HQ of the delay and provide an explanation for the nature of the delay. Partners will provide a template for monthly financial reporting. A financial report must be received each month for all bank accounts held by Partners Paraguay which includes all of the following:

- A) Signed bank reconciliation (template provided by Partners, see [Annex C](#))
- B) Copy of the bank statement(s)
- C) Expense report indicating all expenditures in the month (on the template provided by Partners, see [Annex C](#))
- D) Copies of all documentation to support the expenditures listed on the expense report
- E) If reporting is done in local currency, then a copy of the monthly average exchange rates must be submitted from the Central Bank of Paraguay.

Partners may withhold a cash flow advance request if Partners Paraguay fails to provide timely reporting of expenditures in accordance with the above guidelines.

### **3.2 Visual Compliance (including SAMS) Check**

Partners HQ, in accordance with Federal regulation, requires that Partners Paraguay run a Visual Compliance check on all recipients (individuals and entities) who are receiving any funds. The website for Visual Compliance is: <https://www.visualcompliance.com/> and the necessary login information will be provided by Partner HQ. Proof that the Visual Compliance check was done must be retained and kept along with proof of the payment, **prior to the recipient receiving any funds**. The Visual Compliance check must be run at a minimum, once per calendar year (January – December) prior to the first payment of the year in order to be compliant.

Each month, Partners HQ will request copies of selected Visual Compliance checks for inspection and to ensure compliance. The transactions will be selected at random.

## **4. Financial Records, Audits & Record Retention**

### **4.1 Record Retention and Accounting**

Partners Paraguay must maintain financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, the project. Such records must comply with accounting principles generally accepted in the U.S. and Paraguay.

Partners Paraguay records and any subrecipient records that pertain to the project must be retained in country for a minimum period of five years from the date of submission of the final expenditure report. Partners Paraguay will need to work with Partners HQ to ensure documentation and records are safeguarded for the period of five years and or make necessary arrangements to transport the necessary documents to the international office, upon closeout of the country office.

### **4.2 Filing & Records**

The PD is responsible for establishing guidelines and procedures for filing. In addition, he/she is responsible for maintaining the general filing system or appointing another member of the management team to assist in this process. At a minimum, all financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, the project must be stored in a fire-proof filing cabinet with a lock. Access to the files should be restricted to the PD and FO Finance Manager.

### **4.3 Audits**

Partners Paraguay must have an annual audit conducted in accordance with the "Guidelines for Financial Audits Contracted by Foreign Recipients" [https://www.usaid.gov/sites/default/files/documents/1868/591maa\\_new.pdf](https://www.usaid.gov/sites/default/files/documents/1868/591maa_new.pdf), for any fiscal year (January – December) in which Partners Paraguay expends a combined total of USD \$750,000 or more in all Federal awards. Any donor can make a request and has the right to conduct an audit any time during the life of a project/program that the donor funds. Any annual audit must be conducted in coordination with Partners HQ. The terms of reference and the selection of the audit firm must be approved by the CFO at Partners HQ.

Partners HQ retains the right to conduct a financial review, require an audit, or otherwise ensure adequate accountability of organizations expending federal funds, regardless of the audit requirements above.

## 4.4 Financial Reporting

The FO Finance Manager will provide the FO Director with the below reports monthly:

1. Balance Sheet
2. Income Statement
3. Report on Budget versus Actuals

The PD is responsible for review and approval of the above financial statements. Copies of the approved financial statements must be submitted to Partners HQ quarterly.

## 5. Inventory Control

### 5.1 Equipment vs. Supplies

- **Equipment** means tangible personal property (including information technology systems) having a useful life of more than one year and a per-unit acquisition cost which equals or exceeds USD \$5,000.
- **Supplies** means all tangible personal property other than those described in equipment (above). A computing device (computers, etc.) is a supply if the acquisition cost is less than USD \$5,000, regardless of the length of its useful life.

### 5.2 Inventory Control Requirements

A physical inventory of Partners Paraguay must be taken, and the results reconciled with Partners Paraguay's records at least once every year in January. The monetary value threshold for accounting for inventory items (furniture, equipment and fixtures) in Paraguay is \$50 USD per item.

The document "Master Equipment & Supply Listing", found in [Annex A](#) must be submitted to Partners HQ annually no later than January 31<sup>st</sup>. The FO Admin Manager must certify and



reconcile to the books the “Master Equipment & Supply Listing” and the PD must review and approve.

### 5.3 Use of Equipment

Partners Paraguay strives to ensure that its employees have modern and adequate equipment to make their work easier and more efficient.

Responsibilities for the proper use of equipment:

- Handle the assigned equipment with care
- Monitor the optimal operation of assigned equipment
- If for any reason equipment from another source is to be used, the employee must ensure that it contains no viruses in order to preserve information on the organization's computer network.
- Report any fault or loss of equipment immediately
- Facilitate equipment access to technical and maintenance services.

Partners Paraguay does not authorize the following activities:

- Installation of programs that do not have their corresponding license
- Use of copied programs that are not for the exclusive use of Partners Paraguay
- Installation and use of games, movies, etc.
- Use of programs that may affect the operation of Partners Paraguay network
- Introduction of elements that damage the equipment
- Block operating systems without notice
- Create passwords without sharing them with the systems manager and the F&A Manager, preventing access to working documents.
- Delete, without warning the information necessary for the execution of programs
- Any conduct with bad faith or destructive intent that interferes with the good work of other employees

Use of printing and copying equipment

The use of printers and photocopying machines (including equipment the belong to the office space) is exclusively reserved for work related to Partners Paraguay projects.

#### Use of the Internet and chat software

Use of the internet should be for work purposes only. Software programs for chatting within the organization such as Teams, Skype, WhatsApp, etc. are permitted for office use.

It is strictly forbidden to use chat software such as Facebook, Instagram, or other social media sites, unless for explicit Partners Paraguay work. Access to adult and similar web sites is strictly prohibited. Note that Partners Paraguay reserves the right to monitor all company equipment, emails, etc. to ensure its proper use.

#### Use of Audio Equipment

The use of radio, tape recorder or CDs is not prohibited. However, employees must refrain from doing so in places where their use may interfere with the normal development of their employees' work. In any case, the volume of the music must be of low intensity.

## **6. Cash Management**

### **6.1 Petty Cash**

This is an imprest system of cash control which is used for day-to-day expenditure of items less than \$25.00 USD or its Paraguayan guarani equivocal. The fixed float amount of petty cash is at maximum \$300.00 USD, or its local Paraguayan guarani equivalent. Unless otherwise delegated, the FO Finance Manager is responsible for the petty cash system, including disbursement and reconciliation.

A petty cash log is to be maintained by the FO Finance Manager. The date and amount of petty cash taken must be recorded on the petty cash log and signed by the person receiving the cash. The FO Finance Manager will complete the details of the expenditure and track all receipts associated with petty cash. At the end of each month, a petty cash count should be completed to confirm the balance; a template is provided in [Annex B](#).

When the balance of the petty cash reaches \$50.00 USD, the FO Finance Manager will reconcile the petty cash, ensuring that all receipts and vouchers are accounted for, and replace funds by drawing the required amount made out to petty cash. When petty cash is reimbursed by a withdrawal, the transaction is recorded in the accounting records allocating each item to the appropriate line item. The PD is responsible for review and approval of the petty cash reconciliation, unless otherwise delegated in writing. The PD is also responsible for surprise cash count to be done no less than quarterly and at the end of fiscal year closure, unless otherwise delegated in writing.

## **6.2 Exchange Rates**

To report all revenues and expenditures, Partners Paraguay uses a monthly average exchange rate. Proof of exchange rate must be submitted monthly to Partners HQ with the monthly field expenditure reports.

## **6.3 Bank Accounts**

Partners Paraguay is authorized to set up one bank account for each project. If any additional bank accounts are required, the PD must request permission and approval in writing form the Chief Financial Officer (CFO). The goal is to keep Partners Paraguay's bank accounts to the minimum number needed.

The bank accounts should only be used for the purpose of the project and in the name of the Partners Paraguay. Transactions related to other projects, etc. will not be permitted. The bank account should have a HQ staff member and a minimum of two signatories, the FO Finance Manager and the PD. The PD will approve all the payments and sign all checks, unless otherwise delegated in writing. For payments and checks exceeding \$750.00 USD, the FO Finance Manager must sign as a second signatory.

Information on any new bank account must be sent to Partners HQ and provide the following information: the name on the account, account number, bank name, type of account, list of signatories on the account and current balance. Changes to the signatories on the account must be approved by the PD and notification should be provided to Partners HQ. Upon hiring

or termination of employee with signatory power, the bank account signatories must be updated accordingly.

### **6.3.1 Monthly Bank Account Reconciliations**

The monthly bank statement will be used to reconcile the account each month. Each bank account should have a separate general ledger account, differentiated by sub-code.

At the end of each month the Partners Paraguay will receive the monthly bank statement from the bank account. Note an official statement must be obtained from the bank account, regardless of whether any transactions took place during the month. If the reconciliation is done in Paraguayan guaraníes, proof of exchange rate to USD must be provided.

The purpose of the monthly bank reconciliation is to reconcile the balance shown on the bank statement with the ending balance on the general ledger journal. Each transaction (check, wire, advance, etc.) must be recorded separately. A lump sum total will not be permissible. All bank reconciliations must be done on the field report expenditure template and reconciliation, found in [Annex C](#).

The reconciliation tab should not be used to restate the monthly bank activity but should be used to show any outstanding transactions that occurred during the month but have not yet been reflected on the bank statement. The prior month's bank reconciliation must be checked for any items that still remain outstanding. Transactions that remain uncleared from previous months should be promptly researched with the bank or the payee. The tab for financial field report of general ledger activities should show all financial transaction occurring in the month.

Once the full bank reconciliation is completed, the FO Finance Manager will be responsible for submitting to Partners HQ the following: bank reconciliation, copy of the bank statement, full financial field report (general ledger report), and copies of all receipts by the 7<sup>th</sup> of each month for the prior month's expenditures as indicated in [3.1 Reconciliation of Assets, Liabilities & Cash Accounts](#).

## 6.4 Cash Flow Advances

Partners Paraguay may request up to 30 days of cash needs based on the monthly cash flow projection. Cash may be drawn once a month. A cash flow request must be used for all cash requests to Partners HQ, the template is provided in [Annex D](#). Funding requests should be sent to Partners HQ by the 7<sup>th</sup> of the month to be processed on the mid-month wire and check release cycle, unless stated otherwise. Partners Paraguay should plan enough lead time when requesting cash to take into account the wire processing time by the bank and Partners HQ. Cash flow advances must be cleared monthly through submission of a financial report that is submitted to Partners HQ in accordance with [3.1 Reconciliation of Assets, Liabilities & Cash Accounts](#). Often times the cash flow advances will not clear entirely each month, and therefore any leftover funds should be taken into consideration as cash on hand when determining the next month's cash flow request. If financial reports are not submitted on time, additional advances to Partners Paraguay may be held at the discretion of the CFO.

### 6.4.1 Excess Cash on Hand

Excess funds are defined as cash in excess of 60 days cash needs for Paraguay operations. As having an excess of funds in Paraguay can pose a risk, Partners Paraguay should consult with Partners HQ to determine the best course of action to rectify the situation.

## 6.5 General Cash Handling Policies

Below are the general guidelines that Partners Paraguay is required to meet in order to ensure compliance and safeguarding of cash.

### 6.5.1 Use of Safes

Partners Paraguay is required to use a safe for the storage of office cash. Access to the safe should be strictly controlled. A set of keys should be kept by the PD and FO Finance Manager only.

### 6.5.2 Minimizing Cash Transactions

Given the inherent risks associated with cash handling, Partners Paraguay must always use other means of payment whenever possible, such as bank debit card, checks or wire transfers

and avoid use of petty cash and advances. The maximum cash payment that is permissible is \$250.00 USD. Transactions over this threshold must be made with another payment method such as check or wire transfer.

### **6.5.3 Evidence of Receipt by Payee**

To prevent duplicate payments or claims of discrepancies, all cash payments must be documented by evidence of receipt of payee. This means that the recipient of the payment must sign that the cash was received in total at the time of payment. A numbered receipt should be prepared in duplicate indicating the amount and date and should be signed by the recipient. One copy should be given to the payee and one copy should be retained and included with the voucher documentation.

### **6.5.4 Periodic Cash Counts – Petty Cash Certification**

Cash balances should be physically counted periodically to ensure that cash journal/receipts balances match the actual cash on hand. These cash counts should be done in accordance with [Section 6.1 Petty Cash](#). Petty cash certifications should conform to the following general guidelines:

- Cash counts should be done discreetly, out of general view and should be undisturbed.
- Counts should be performed by a minimum of two people. One should serve as the counter and the other as a witness of the count. A template of the Petty Cash Certification can be found in [Annex E](#) which must be completed each time.
- Cash counts should be performed each month and at random. Note that Partners HQ reserves the right to request a Petty Cash Certification at any time.
- Any overages or underages must be recorded in the cash journal at month end in order to reconcile to the final count. Discrepancies may not be held over to future periods. The cause for any overages or underages must be further researched and appropriate action taken to ensure that it does not happen in the future. Partners HQ must be notified of any discrepancies.

## **7. Partners Paraguay General Policies**

### **7.1 Anti-Corruption Policy**

Partners Paraguay and its affiliates must have a zero-tolerance against bribery and corruption. The objective of the anti-corruption policy is to ensure that appropriate anti-corruption and bribery procedures are in place to avoid any violations of relevant laws and regulations. This policy applies to all officers, directors, shareholders, employees and appointed third party representatives. For a copy of the full policy, please reference the Partners General Field Office Manual.

### **7.2 Anti-Discrimination**

Under the ILO Convention 111, discrimination includes any distinction, exclusion or preference based on race, color, sex, religion, political opinion, national ancestry or social origin, that results in destroying or altering the equality of chances or treatment in employments or occupation. The National Constitution of Paraguay provides that no discrimination shall be admitted between workers on the basis of ethnicity, sex, age, religion, social status and political or union preferences (Art. 88). Furthermore, all the inhabitants of the Republic are equal in dignity and rights (Art. 46).

Partners Paraguay promotes diversity and equal opportunity in the workplace in accordance with all applicable local laws. If you believe that you have been the victim of any type of discrimination or are aware of such conduct, you must promptly notify your supervisor, PD or Partners HQ. An employee who has made a report of questionable conduct and who subsequently believes he or she has been subjected to retaliation of any kind by any Partners Paraguay or Partners HQ employee is directed to immediately report it to the PD or the appropriate party at Partners HQ. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to and including termination of employment.

All Partners Paraguay employees have the responsibility to maintain honesty, integrity and efficiency, and to reassure their conduct and commitment to the highest ethical standards. It is important to emphasize that all employees are important. The development and success

of Partners Paraguay depends on the interest and creativity of its employees in the work. They must maintain good relationships and treat others kindly, creating a harmonious work environment and excellent employee relationships including equality of opportunity without discrimination or harassment.

### **7.3 Anti-Sexual Harassment**

The Partners Paraguay prohibits all forms of sexual harassment. Sexual harassment refers to any physical behavior, verbal or not, of sexual nature, affecting women and men's dignity, and deemed inappropriate, unreasonable and offensive for the worker.

The evidence of sexual harassment in the workplace is established as long as the workers perceive that their reaction to such behavior:

1. Is a condition to keep their job and/or
2. Will have an impact on decisions concerning their job and/or
3. Will have an impact on their performance.

Sexual harassment can also come from a behavior that creates a hostile, threatening and humiliating environment. Partners Paraguay is committed to providing a work environment free of any form of verbal or physical discrimination and abuse on the basis of race, age, sex, religion, place of origin, physical disability, sexual orientation, disability or health condition, economic situation, philosophy, national or family origin or social origin or for any other purpose. It is Partners Paraguay's policy to prohibit harassment between employees. The purpose of this philosophy is not to regulate the moral behavior of employees, but rather to ensure professional behavior at work. Employee harassment refers to the use of epithets, nicknames, threats, derogatory comments, offensive jokes, sexual insinuations, requests for sexual favors, and any other type of verbal or similar physical contact. Any employee who considers that she/he is subject to discrimination and harassment will have to report this situation to his/her immediate supervisor, PD or Partners HQ so that the corresponding investigation can be carried out and that the measures that the case deserves to be taken.



## 7.4 Anti-Workplace Violence and Bullying

To protect the welfare of our staff from instances of violence in the workplace, Partners Paraguay has implemented a violence prevention policy. Partners Paraguay strongly believes that all employees should be treated with dignity and respect and that each employee is responsible for her or his actions and consequences. Thus, acts of violence and threats of violence will not be tolerated. The carrying of weapons including, but not limited to, firearms and knives on company or client premises is strictly prohibited. Additionally, Partners Paraguay does not allow workplace bullying. Partners Paraguay defines bullying as “repeated inappropriate behavior, either direct or indirect, whether verbal, physical or otherwise, conducted by one or more persons against another or others, at the place of work and/or in the course of employment.” Such behavior violates the company Code of Ethics, which clearly states that all employees will be treated with dignity and respect. Bullying may be intentional or unintentional. However, it must be noted that where an allegation of bullying is made, the intention of the alleged bully is irrelevant and will not be given consideration when meting out discipline. As in sexual harassment, it is the effect of the behavior upon the individual that is important. Partners Paraguay considers the following types of behavior examples of bullying:

- Verbal bullying: Slandering, ridiculing or maligning a person or his/her family; persistent name calling that is hurtful, insulting or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- Physical bullying: Pushing, shoving, kicking, poking, tripping, assault or threat of physical assault; damage to a person’s work area or property.
- Gesture bullying: Nonverbal threatening gestures or glances that convey threatening messages.
- Exclusion: Socially or physically excluding or disregarding a person in work-related activities.

Any violation of this policy may lead to disciplinary action, up to, and including termination of employment. Additionally, employees have a “duty to warn” their supervisors, PD or

Partners HQ of any suspicious workplace activity, situations or incidents that appear problematic. This includes, but is not limited to, threats or acts of violence, aggressive behavior, and threatening comments or remarks. While Partners Paraguay cannot guarantee the safety of employees, all reports will be promptly and thoroughly investigated.

#### **7.4.1 Harassment/Bullying Complaint Procedure**

If you believe you have been subjected to prohibited harassment or you are aware of any such conduct, the incident must be reported immediately. We ask that any person who has witnessed or been the subject of harassment contact our independent Human Resource (HR) Consultant, Foster Thomas. A confidential hotline at +1 (202) 247-9610 has been set up for you to report your concern via voicemail message. The voicemail is monitored by an HR Consultant from Foster Thomas who will review all messages and promptly contact you to discuss your concern and to gain a full understanding of the situation. The HR Consultant will then provide an overview of the situation to the Ethics Committee of the Board. The Ethics Committee will then review the case and make a determination of whether the case should be referred to the President (or, in appropriate circumstances, to another member of Senior Management or the PD) for further action. If the complainant provides no identifying information in the message, Foster Thomas will relay the complaint directly to the Ethics Committee for review.

Alternatively, or in addition to the confidential hotline, you may report harassment to your supervisor, PD or Partners HQ, as you feel comfortable. Such complaints must be recorded in writing, either by the complainant or by the supervisor/PD to whom it is reported. A Harassment Complaint Form is available in [Annex F](#). Any supervisor or PD who becomes aware of possible harassment or retaliation must immediately advise a member of Partners HQ so it can be investigated in a timely and confidential manner.

All harassment complaints will be promptly and thoroughly investigated, and each complaint will be handled as confidentially as possible under the circumstances. Complaints will be investigated impartially and if found to be truthful, Partners Paraguay will take immediate

corrective action. Anyone found to have engaged in harassment will be subject to appropriate disciplinary action up to, and including, termination of employment.

#### **7.4.2 Protection from Retaliation for Harassment/Bullying Complaint**

Partners Paraguay prohibits any retaliation against employees who legitimately exercise their rights under this policy or who participate in an investigation. There is to be no interference, coercion, discrimination, reprisal or retaliation against any employee for making a truthful, good-faith complaint or report of a violation. Employees who believe they are being discriminated against as a result of having legitimately filed a complaint or having truthfully participated in an investigation should immediately notify their supervisor, PD or Partners HQ.

### **7.5 Freedom of Association**

Under Article 42 of the National Constitution the law recognizes and protects freedom of association and strike. According to the article 96 of the National Constitution, employers and workers have the right to freely associate in defense of their interests, forming professional associations or unions.

Workers and employees, without prior authorization, have the right to constitute the organizations they consider convenient, as well as to affiliate to these with the sole condition of observing their status. Unions are organizations of free entry and retirement of workers. The statutes will regulate the co-participation in institutions of mutual benefit that the union had established with contributions from its members. In addition, strikes are legal as long as they are carried out in compliance with the terms described in articles 358 to 378 of the Paraguayan Labor Code.

### **7.6 Freedom of Work**

In accordance with Article 86 of Paraguay's National Constitution, that establishes that all its inhabitants have the right to a freely chosen, lawful job to be carried out in free and fair conditions, Partners Paraguay recognizes the freedom to work.

## **7.7 Anti-Forced Labor**

Partners Paraguay prohibits all forced labor. Forced labor shall mean any work or service exacted from an individual under the threat of any penalty and for which the individual has not voluntarily offered himself. No citizen can be forced into forced labor except in the case of a legal conviction.

## **7.8 Conflict of Interest**

Partners Paraguay requires that all potential conflicts of interest be reported immediately to the PD and Partners HQ. A personal conflict of interest is a situation in which an employee, or entity representative has a financial interest, personal activity or relationship that could impair the employee's ability to act impartially when performing activities on behalf of Partners Paraguay. To avoid a conflict of interest, Partners Paraguay does not allow any employee, entity representative or any member of an employee's immediate family to receive a sub-award or have any financial or other interest in the entity selected for a sub-award without disclosing the conflict. Additionally, all employees, and representatives of Partners Paraguay must neither solicit nor accept gratuities, favors, or anything of monetary value from sub-recipients or prospective sub-recipients. Any outside business dealings of Partners Paraguay's employees must be legal and not conflict in any manner with Partners Paraguay's operations. Outside business dealings include, but are not limited to, any investments, loans, employment, or business ownership by Partners Paraguay's employees. Furthermore, contracts or transactions (i) between Partners and one or more of its board members, officers, or employees, or (ii) between Partners and any corporation, partnership, association or other organization in which one or more of its board members, officers or employees are directors or officers, or have a financial interest, shall not be void or voidable solely for this reason, or solely because the board member, officer or employee is present at or participates in any meeting which authorizes the contract or transaction, or solely because his, her, or their votes are counted for such purpose, if:

1. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors, and the Board of Directors in good faith authorized the

contract or transaction by the affirmative votes of a majority of the disinterested board members or officers, even though the disinterested board members or officers may then become less than a quorum; or

2. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors and officers voting thereon and the contract or transaction is specifically approved in good faith by a vote of the Board of Directors; or
3. The contract or transaction is fair to Partners as of the time it is authorized, approved or ratified by the Board of Directors.

Common or interested Board members or officers may be counted in determining a quorum at any meeting of the Board of Directors which authorizes the contract or transaction, provided, however, that the interested person or persons shall be excluded from the room during the discussion of the contract or transaction in question and during the vote thereon.

## **7.9 Confidentiality & Intellectual Property**

Partners Paraguay's work makes it essential that employees and consultants do not divulge proprietary company information unless expressly authorized by an officer of the company. Partners Paraguay's employees and independent contractors may have access to and become acquainted with proprietary and confidential information such as client lists, rates, financial records, internal structure, internal policies, publications, inventories, computer software and related documentation and similar information, which is owned by Partners Paraguay and which is regularly used in the operation of the business of the company. All employee and consultant agree to not use such proprietary or confidential information obtained during employment or contractual relationship with Partners Paraguay as a means of making private profit.

Additionally, certain information concerning Partners Paraguay's business is a valuable, special and unique asset of the company. Employees and consultants agree not to disclose Partners Paraguay's proprietary or confidential information to any person or entity for any reason, except as required in the course of employment or contractual relationship, or

required by law or court order; and further agree not to make use of such information his/her own benefit or the private benefit of others.

All files, records, documents, drawings, specifications, equipment and similar items relating to the business of Partners Paraguay, including computer software or software documentation, shall remain the exclusive property of Partners Paraguay and shall not be reproduced, removed or transmitted from the premises of the company under any circumstances without the prior written consent of the Partners Colombia. Upon termination of employment with Partners Paraguay, employees and consultants are required to return all company property to the PD.

Employees and consultants also agree that if any trade secret, formula, device, technology, technical information, process, etc. (“invention”) is made during the course of employment or contractual relationship, alone or jointly with others which is made with Partners Paraguay’s equipment, supplies, facilities, trade secrets or time, or which relates to the business of Partners Paraguay, or which results from any work performed by me for Partners Paraguay, such invention will belong to Partners Paraguay and Partners HQ, whom will have full authority to use, transfer or license it. Partners Paraguay and Partners HQ will have the right to keep such invention as a trade secret, if it so chooses. It is further agreed that Partners Paraguay is not required to designate the employee or consultant as the inventor or author of any such invention if it is distributed publicly or otherwise.

Any violation of this policy may lead to disciplinary action, up to, and including termination.

## **7.10 Drug Free Workplace**

It is the policy of Partners Paraguay to provide staff members with a working environment that is free from the problems associated with the use of illegal drugs. The use of illegal drugs is inconsistent with the behavior expected of staff members and subjects Partners Paraguay to unacceptable risks of workplace accidents or other failures that would undermine Partners Paraguay’s ability to operate effectively and efficiently.

In addition, the use of illegal drugs is contrary to the mission of Partners Paraguay, which includes providing drug prevention education to communities in Latin America, the Caribbean and the United States. In order to carry out this mission, Partners employees must set an example in their behavior inside and outside the workplace. Therefore, employees found to be engaged in the use of illegal drugs or the unlawful manufacture, distribution, or dispensing of a controlled substance, either in or outside the Partners Paraguay's workplace, are in violation of Partners Paraguay's policies and are subject to disciplinary action, which may include termination of employment, according to Article 81 section j) of the Labor Code. Each staff member must agree to notify Partners Paraguay of any criminal drug statute conviction for a violation occurring in the workplace no later than five (5) days after such conviction. Non-compliance with this policy will result in disciplinary action.

### **7.11 Smoke Free Workplace**

It is the policy of Partners Paraguay to prohibit smoking on all Partners Paraguay's premises in order to provide and maintain a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind."

The smoke-free workplace policy applies to:

- All areas of Partners Paraguay building
- All visitors to the Partners Paraguay
- All staff and consultants working on Partners Paraguay's premises

Smoking is permitted outside the building where designated. Employees who violate the smoking policy will be subject to disciplinary action.

### **7.12 Alcohol Policy**

An employee whose use of alcohol adversely affects job performance is subject to disciplinary action, which may include termination of employment, according to Article 81 section j) of the Labor Code. Partners Paraguay may also require that an employee seek

assistance and/or counseling services as a condition of employment in appropriate circumstances.

### **7.13 Code of Ethics**

Partners Paraguay has established the below Code of Conduct. It has consequently incorporated these standards, not only in relation with its employees, but also with its consultants, and where the non-respect of all or one of them is a justifying cause of termination of an employee contract or the end of a specific job. Each employee, volunteer, consultant and representative and member of the Partners Network is expected to adhere to a high standard of ethical conduct. The good name of Partners Paraguay depends on the way its network and representatives conduct business and the way the public perceives that conduct. Unethical actions, or the appearance of unethical actions, are not acceptable.

Below is Partners Paraguay's standard code of conduct principals:

1. Sexual exploitation and abuse by employees is a serious misconduct that may result in termination of the employee's contract.
2. Sexual activity with children (persons under 18 years of age) is prohibited regardless of the legal age established locally. It is not accepted as a defense that there is a misleading assessment of the age of the child.
3. The exchange of money, employment of goods or services for sex, including sexual favors or other forms of behavior used to humiliate, degrade or exploit, is prohibited. This includes the exchange of assistance that must be addressed to the beneficiaries.
4. Sexual relations between humanitarian workers and beneficiaries are strongly censored because they are based on inherent inequalities. This type of relationship transgresses and violates the credibility and integrity of the work of humanitarian assistance.
5. In the event that an employee of the Humanitarian Section is aware of or makes reference to suspicious behavior related to sexual abuse by a co-worker, whether working in the same office or not, he or she should report it to his/her supervisor or to Partners HQ.



6. Humanitarian staff is required to create and maintain an environment that prevents sexual exploitation and abuse and can promote the implementation of a code of conduct. Managers at all levels have special responsibilities to support and develop systems that maintain this environment.
7. All persons interacting with or representing the Partners Network should maintain the confidentiality of information entrusted to them by Partners Paraguay and any other confidential information about the organization, its activities, partners, funders, stakeholders or suppliers, that comes to them, from whatever source, except when disclosure is authorized or legally mandated.
8. Persons interacting with or representing Partners Paraguay in a foreign country are responsible for knowing and complying with these laws. Furthermore, anyone interacting with or representing the Partners Network must also take care to understand and respect the cultures and customs of the countries where Partners operates. Anyone working in the international arena should be aware of the US Foreign Corrupt Practices Act. The Act prohibits giving anything of value to officials of foreign governments in order to obtain or retain business. It is prohibited for any representative of Partners Paraguay or its network to engage in bribery, kickbacks, payoffs or other corrupt business practices. It is also Partners Paraguay's policy to fully comply with all applicable US export, customs and trade control and regulations, licensing/trademarking/copyright requirements and other relevant US and international laws.
9. Partners Paraguay intends to provide a pleasant, healthful, comfortable, and professional atmosphere that is free from intimidation, hostility or other offenses which might interfere with the pursuit of our mission. Moreover, Partners Paraguay does not tolerate discrimination based on gender, race, language, color, sex, religion, age, pregnancy or maternity, political opinion, disability, sexual orientation, disability or health condition, economic situation, philosophy, national or family origin or social origin, or any other legally prohibited characteristic. Harassment or discrimination

based on sex or any other legally prohibited basis is illegal and is contrary to the policy of Partners Paraguay.

If you know of or suspect a violation of applicable laws, rules or regulations or this Code, you must immediately report that information to the PD and Partners HQ. Individuals can also contact Partners confidential hotline at +1-(202)-247-9610. Partners HQ will determine, or shall designate appropriate persons to determine, appropriate action in response to violations of this Code.

Partners Paraguay prohibits any retaliation against anyone who makes a good faith report of a suspected violation or who participates in an investigation. There is to be no interference, coercion, discrimination, reprisal or retaliation against any person for making a valid and truthful complaint or good faith report of a violation. Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable federal, state, or local laws.

### **7.14 Grievance Policy**

Partners Paraguay provides employees with the opportunity to bring work-related problems and concerns to the attention of management and to resolve such problems fairly and promptly. Any employee who feels that s/he has been treated unfairly or inequitably regarding a condition or action affecting employment should bring the matter to the attention the PD, Partners HQ or to the confidential hotline at +1 (202) 247-9610.

### **7.15 Whistleblower Policy**

Employees have the duty to comply with all applicable laws and to assist Partners Paraguay to ensure legal compliance. Partners Paraguay encourages its employees to report improper activities in the workplace and will protect employees from retaliation for making any such report in good faith. Employees have the right to report, without suffering retaliation, any activity by the organization or its employees that the employee reasonably believes:

- Violates any local, state or federal law applicable in Paraguay or the United States of America;

- Violates or amounts to noncompliance with any local, state or federal rule or regulation applicable in Paraguay or the United States of America;
- Violates fiduciary responsibilities by a corporation to its stakeholders or employees.

In addition, employees can refuse to participate in an activity that would result in a violation of, or noncompliance with, any local, state or federal statutes, rules or regulations applicable in Paraguay or the United States of America. Employees are also protected from retaliation for having exercised any of these rights in any former employment. The whistleblower protection laws do not entitle employees to violate a confidential privilege of the organization (such as attorney-client privilege) or improperly disclose trade-secret information.

### **7.15.1 Whistleblower Complaint Procedure**

Any employee who suspects a violation of ethics or legal compliance is required to report the situation(s) to his/her supervisor, the PD or Partners HQ or the confidential hotline at +1 (202) 247-9610.

### **7.15.2 Protection from Retaliation for Whistleblower Complaint**

Partners Paraguay is prohibited from discharging an employee or taking other adverse employment action against an employee in retaliation for the employee's good faith complaint about safety and health hazards or other violations of law in the workplace and the environment.

## **7.16 Labor Disputes**

In the case of labor dispute, the employee and Partners Paraguay would work to immediately rectify the conflict. In the event that the labor dispute cannot be resolved between the two parties, the Ministry of Labor of Paraguay will be informed to act as an instance of labor mediation on disputes related to salaries, working conditions that are not determined by the legal provisions, regulations, collective conventions or agreements in force, as well as those related to negotiation and revision of the terms of collective conventions.

## 7.17 Hygiene, Health & Workplace Security

Partners Paraguay will take all necessary precautions to effectively protect the life, safety, hygiene and health of employees (Article 272, Paraguayan Labor Code). In order to ensure this, Partners Paraguay in accordance with Article 275 of the Paraguayan Labor Code, will take the necessary measures that are aimed at:

- Preventing accidents in the workplace;
- Ensuring that all machinery, equipment and other operations have security measures in place and are kept in good condition and will be subject to periodic inspection and maintenance;
- Preventing occupational diseases;
- Preventing fires;
- Providing a healthy and clean work environment;
- Providing the necessary clothing and equipment to ensure appropriate protection;
- Providing security guards for the office as necessary;
- Warning employees of any workplace dangers that could impact their health;
- Carrying out training activities on hygiene and safety at work as needed;
- Ensuring proper hygiene in sanitary facilities;
- Ensuring that appropriate hygiene is maintained in facilities where food or drinks are prepared;
- Maintaining a first aid kit in the office;
- Assessing, avoiding and combating risks at their source;
- Establishing the conditions and methods of work and production that have the least negative impact on the hygiene, safety and health of workers;
- Planning prevention and determining the measures to be used, both collective and individual, as well as the protective material to be used against the risks inherent in the activity carried out; and that they ensure that workplaces, machinery, equipment, operations and processes, aggressive agents and substances, which are under their control, do not pose risks to the health and safety of workers;

- Ensuring compliance with the provisions on prevention and protection at work, and issue clear and precise orders;
- Informing the competent authorities about occupational accidents and occupational diseases of which workers are victims, which cause more than three days of incapacity for tasks within eight days following the declaration of the disease and in accordance with the established procedure in the pertinent regulations; and
- Complying with the legal or conventional regulations, as well as the measures of immediate application ordered by the labor administrative authority, as a result of an intervention or inspection; and
- Providing training and practical and adequate information on health, safety and hygiene matters to the workers.

All employees share the responsibility for workplace safety. The PD is responsible for developing safety awareness and ensuring that all operations are performed with regard for the safety and health of all employees involved. Employees are responsible for continuously practicing safety while performing their job duties. Employees are encouraged to be alert to unsafe conditions and report them promptly to the PD. All reports can be made without fear of reprisal. Partners Paraguay will comply with safety, hygiene, and prevention required under Title V of the Paraguayan Labor Code.

#### **7.17.1 Housekeeping**

Safety is directly related to neatness and cleanliness. Items that are out of place can cause accidents and injuries, and lack of cleanliness can quickly become a health risk. Furthermore, our office reflects our staff and organization to outside guests, so it is everyone's shared responsibility to project the best impression possible.

Employees are expected to keep their work areas neat, organized, and free of clutter or objects that could interfere with the work process or cause accidents. Employees should assist with keeping public areas presentable by:

- Returning tools and supplies to their proper place and condition after use.
- Properly disposing of trash and cleaning spills or other messes.

- Storing limited food items in the refrigerator, and promptly consuming or removing them.
- Making sure hallways, walkways and other publicly visible areas are free and clear of dangerous obstacles or unsightly objects.
- Reporting safety and maintenance issues immediately.

### **7.17.2 Job Related Injury Reporting**

Employees should immediately report all work-related illnesses, injuries, or occupational disease exposures to the PD or Partners HQ. Employee should complete the Employee Incident Report Form, found in [Annex G](#). Once reported, the PD in conjunction with Partners HQ will determine the next steps.

Partners does not discriminate or retaliate against employees who have filed legitimate job-related injury report. Supervisors will not take or threaten any action to compel or persuade employees not a job-related injury report.

## **8. Recruitment and Labor Contracts**

### **8.1 Application Process for Personnel**

After a position is posted and available, the applicant must complete the Application Form for Personnel, template is provided in [Annex H](#). The applicant will then send the complete application to the PD. Only the final list of applicants who meet the qualifications will be sent to the supervisor of the position and Partners HQ, whom will proceed with the recruitment process, with support from the PD. Note that all recruitment of staff will be internal and/or external.

#### **8.1.1 Internal Recruitment**

In order to promote promotion within Partners Paraguay as much as possible, the vacant position may be filled by any employee who would be interested and who, after evaluation, meets the requirements to fill the vacancy. If a promotion is made internally, the employee may be eligible for a salary increase and other changes as determined by the new position.

### **8.1.2 External Recruitment**

When external recruitment for a vacancy is needed, the job offer should be actively advertised and promoted locally and internationally. The advertisement should be clear, accurate and brief, but should also provide terms of reference, necessary training and experience, and how to submit an application. At a minimum, advertising notices will provide:

1. Terms of reference
2. Information on the necessary training and experience of the candidate
3. Place and deadline for submission of applications

The PD will review all CVs received and those meeting the selection criteria will be forwarded to the supervisor of the position and Partners HQ.

### **8.1.3 Transfer within Partners Paraguay**

An employee's transfer means moving from one department to another, to a similar position. The salary remains unchanged. This is not a disciplinary measure. The transfer of an employee is carried out:

1. By decision of the PD, when in the interests of Partners Paraguay and Partners HQ
2. At the request of the employee, the case will be considered according to the possibilities within Partners Paraguay
3. At the request of his/her immediate supervisor

Any transfer of position requires the decision of the managers of the two (2) departments concerned, PD and Partners HQ.

### **8.1.4 Promotion within the Partners Paraguay**

Promotion is not automatic. However, following the annual performance evaluation, an exceptional employee may benefit from promotion if there is availability within the organizational structure at Partners Paraguay, based on the needs of each project, and the availability of resources. The promoted employee receives the basic salary corresponding to the new position held, in accordance with the pay grade and category.

## 8.2 Selection Process for Personnel

Both internal and/or external candidates should be reviewed and interviewed. A selection committee will be organized and must include at a minimum the position's supervisor, PD and Partners HQ. It will have two potential phases:

1. An interview of the successful candidates by a selection committee to assess:
  - a. The qualifications of the candidate in relation to the profile of the position to be filled
  - b. His/her past experience
  - c. His/her sense of responsibility
  - d. His/her ability to perform the duties of the position
  - e. His/her ability to communicate
2. A written or practical test (if required) to judge the technical qualifications of the candidate. This will include a matrix for evaluating candidates through a scoring system. This will support the procurement process for selecting the final candidate to fill the position.

Note: some projects will require specific qualification/requirements before hiring any Key Personnel. Any specific donor requirements should be followed when hiring any personnel.

Final candidate's information will be sent to the PD and Partners HQ for final approval. Once approved, the candidate will sign his/her contract and be provided with his/her orientation. All offer letters/agreements should, at a minimum, be signed by both the employee and PD.

## 8.3 Employee vs. Contractor Definition

### 8.3.1 Employee Definition

Article 21 of the Paraguayan Labor Code defines employee as any person who performs a work or provides other material, intellectual or mixed services, by virtue of an employment contract.



### **8.3.2 Contractor Definition**

An independent contractor does not provide services under the direction and dependence of another and is not subject to specific working hours. Independent contractors are natural or legal persons that are hired for the execution of one or several outputs or the provision of services for the benefit of third parties, for a certain price, assuming all the risks, to realize them with their own means and with freedom and technical and managerial autonomy. Service contracts will be regulated by article 845 and following of the Paraguayan Civil Code.

## **8.4 Labor Contract Definition**

Employment contract is the agreement under which a worker is obliged to perform a work or provide a service to an employer, under the direction or dependence of the latter and on his own account, by paying remuneration (Article 17, Paraguayan Labor Code).

### **8.4.1 Employee Labor Agreements**

Article 19 of the Paraguayan Labor Code states that the existence of the contract between the one who gives work or uses a service and the one who provides it is presumed. In the absence of a written or verbal stipulation, the conditions of the contract shall be those determined by the labor laws and collective contracts or, failing these, by the customs and customs of the place where the work is carried out.

Per Partners Paraguay, individual contracts of employment must be written, and all salaries quoted in USD at the gross value. Labor contracts shall be drafted in Spanish in two originals, one of which shall be given to each of the contracting parties. This includes all new contracts, modifications and/or novation.

All the legally established employee benefits are deemed to be automatically included in any employment contract. The minimum legal terms and conditions apply by default, unless custom or practice in the workplace, or an applicable collective agreement, includes any other term which improves the employment conditions for the employee.

## **8.5 Types of Contracts**

Below are the options for contracts at Partners Paraguay:

- **Fixed-term/Temporary contract** -The fixed-term contract is the one in which its term is fixed in advance by the will of the parties. Per Article 50 of the Paraguayan Labor Code fixed-term contracts or for a specific work are exceptional and can only be entered into in cases where the accidental or temporary nature of the service to be provided or of the work to be performed so requires. Fixed-term contracts cannot exceed 5 years for employees; however, they may be renewed (Article 49, Paraguayan Labor Code).
- **Open-ended/Permanent contract** - The open-ended contract is one whose term is not provided for in advance and which can cease at any moment by the will of the worker or the employer, without prejudice to the legal provisions regulating the termination of the contract of employment. Per Article 50 of the Paraguayan Labor Code contracts related to work that by their nature are permanent or continuous in the company, will be considered as entered into for an indefinite time, although they express a term of duration. The time of service will be counted from the start date of the employment relationship, even if it does not coincide with the granting of the contract in writing.

### **8.5.1 Payment Structure for Labor Contracts**

Upon the creation of an employment opportunity, the PD must determine what type of payment structure for the labor contract will be needed, based on the work to be performed.

The following types of payments options are available:

- **Fixed Price** – Fixed Price consultant agreements are used mainly for assignments in which the content and length of the services and the required output of the worker are precisely specific and for these reasons the worker can generally control the scope of work and duration of services. Under a fixed price agreement Partners Paraguay agrees to pay the worker a predetermined set amount of money for certain products of specified technical natures, such as reports, project designs, etc. that are to be delivered within a specified deadline, the quality of which can usually be readily assessed. Fixed-price agreements provide for a price that is not subject to any

adjustment on the basis of the worker's cost experience in performing the contract. It provides maximum incentive for the worker to control costs and perform effectively.

- Time-Based (Hourly, Weekly, Monthly, etc.) – In a time-based agreement, the worker provides services at a pre-determined time-based unit rate and records all hours worked under the scope of work. Time-based labor agreements are recommended when the nature and scope of the services provided are such that a scope of work provides general guidelines for the activities to be performed and when it becomes difficult to determine the exact time with sufficient precision, which is common in complex scope of works.

### **8.5.2 Pay Structure**

All permanent staff members of the organization, with the exception of consultants, are paid according to the salary schedule of Partners Paraguay.

Each position in a particular category is based on a combination of:

- a) Level of responsibility
- b) Qualifications required for this position

## **8.6 Content of Labor Contracts**

According to article 46 of the Paraguayan Labor Code, the essential elements of the labor contract are:

- a) Place and date of celebration;
- b) Names, surnames, age, sex, marital status, profession, nationality and address of the contracting parties;
- c) Type of work or services to be provided and the place or places of its provision;
- d) Amount, form and period of payment of the agreed remuneration;
- e) Duration and division of the working day;
- f) Benefits provided by the employer in the form of room, food and uniforms, if the employer has obliged to provide them and estimates their value;
- g) The stipulations agreed upon by the parties; and

- h) Signature of the contracting parties or digital printing when they do not know how or are unable to sign, in which case this fact shall be recorded, signing another person at their request. In the latter case, it will be done before the justice of the peace of the jurisdiction, notary public or the general secretary of the respective union, if any.

Likewise, Partners, in developing its purpose may enter into contracts of service provision or independent consulting, where it will be expressly stated that the Contractor will not have any type of subordination and will provide the services in a technical manner and by its own means; as it is framed in articles 845 to 851 of the Paraguayan Civil Code.

## **8.7 Obligations of Binding Labor Contract**

The employment contract must be fulfilled in good faith, and obliges not only what is formally expressed in it, but also all the consequences derived from it or that emanate from the legal nature of the relationship or that by law correspond to it. In accordance with articles 61 to 67 of the Paraguayan Labor Code, below are the obligations of each contracting party.

The workers' obligations are as follows:

- Personally carry out the contracted work, under the direction of the employer or its representatives, to whose authority they will be subject in all matters related to the stipulated benefit;
- Carry out the work with the appropriate efficiency, intensity and care in the agreed form, time and place;
- Abide by the precepts of the work regulations and comply with the orders and instructions given by the employer or its representatives according to the established organization;
- Observe exemplary conduct and good manners at work;
- Refrain from any act that may endanger their own safety, that of their colleagues or that of third parties, as well as that of the establishments, workshops or places where the work is carried out;

- Provide assistance in cases of accidents or risks that imminently endanger the person or the interests of the employer or his coworkers;
- Exceptionally work a longer time than the one indicated for the ordinary day, when the circumstances require it for the good work progress. In this case, they will be entitled to the increase that legally corresponds to them in the remuneration;
- Return to the employer the unused materials and keep in good condition the instruments and work supplies delivered by him/her, not being responsible for the deterioration caused by the natural and proper use of these objects, nor that caused by fortuitous causes, force majeure or coming from poor quality or faulty construction;
- Integrate the organisms that establish the labor laws and regulations;
- Promptly communicate to the employer or its representatives the observations it deems conducive to avoiding damages to the interests and lives of employers or workers;
- Keep strict confidentiality of the technical, commercial and manufacturing secrets of the products whose elaboration they concur directly or indirectly or of which they have knowledge by reason of the work carried out, as well as the administrative matters whose disclosure may cause damage to the company. This obligation also applies after the termination of the employment contract unless that knowledge integrates the acquired skills or completes the worker's professional training.
- Serve with loyalty to the company they work for, abstaining from all harmful competition to it;
- Abide by the preventive and hygiene measures imposed by the competent authorities or indicated by the employer or its representatives for the safety and protection of personnel;
- Notify the employer or its representatives of the causes of absence from work; and
- Comply with other obligations established by labor laws and regulations.

The workers' prohibitions are as follows:

- Missing work without just cause or without permission from the employer;
- Intentionally slow down the pace of work, suspend the execution of the same while remaining in their post or incite their arbitrary suspension, provided that this is not due to a declared strike, in which case they must leave the workplace;
- Use the tools, materials and tools provided by the employer for purposes other than those ordered by the employer or for the benefit of strangers;
- Report to work in a drunken state or under the influence of narcotic drugs or in any other abnormal condition;
- Carry weapons of any kind, unless they are necessary due to the nature of the service;
- Make collections or subscriptions at work centers, without the employer's permission, whenever work activities are interrupted; and
- Restrict the freedom to work or not work and develop any kind of propaganda during working hours within the establishment.

Partners Paraguay obligations are as follows:

- Give effective employment to the workers they hire;
- Pay the agreed remuneration in the conditions, periods and places agreed in the contract, or in the labor laws or regulations and clauses of collective contracts, or failing that, according to custom;
- Pay the worker the salary corresponding to the time he/she stops working for causes attributable to the employer;
- Timely supply to the workers the tools, instruments and elements necessary to carry out the agreed work, which will be of good quality and spare parts as soon as they cease to be efficient, provided that they have not been forced to use their own tools;
- Provide a safe place for the storage of the worker's supplies and tools, under inventory that any of the parties may request;

- Indemnify the worker for the loss of his own tools or supplies, when entrusted to the custody of the employer, they get lost, or when they are destroyed;
- Reimburse the worker for the duly authorized expenses that he/she had incurred on the occasion of his work and required for its execution;
- Grant the worker a license to fulfill his personal obligations imposed by laws or governmental provisions; but the employer is not obliged to recognize, for these reasons, more than two days paid in each calendar month, and in no case more than 15 days in the same year;
- To grant the union executive members license to carry out the essential activities in the exercise of their positions, without the employer being obliged to give them compensation;
- Grant, at the worker's request, the days of paid leave contemplated in Paraguayan law in the following cases: marriage, birth of a child and death of the spouse, children, parents, grandparents or siblings;
- Keep due regard for workers, respecting their human dignity and refraining from mistreating them in word or deed;
- Adopt, in accordance with laws and regulations, appropriate measures in industrial and commercial establishments, to create and maintain the best conditions of hygiene and safety at work, preventing professional risks as much as possible;
- To issue the worker free of charge, upon request, a written certificate regarding their services;
- Prefer, in equal circumstances, Paraguayan workers, and to those who have previously provided satisfactory services;
- Observe good customs and morality during working hours;
- Comply with the provisions of the internal regulations;
- Address justified complaints that the workers raise;
- Train the worker to provide assistance in the event of an accident; and
- Comply with other obligations imposed by labor laws or regulations.

Partners Paraguay prohibitions are as follows:

- Deduct, withhold or compensate any sum from the amount of wages and benefits in money that corresponds to the workers, except in the manner and within the limits established by law;
- Demand or accept from workers money or other bonuses in compensation for being admitted to work or for any other reason related to its conditions;
- Require or induce workers to buy their consumer items in stores or specific places;
- Influence the political, religious or union convictions of its workers;
- Charge the workers any interest whatever the amounts advanced on account of wages;
- Compel workers by coercion or by any other means, to withdraw from the union or trade association to which they belonged;
- Use the black list system, whatever its modality, against workers who withdraw or are separated from the service in order to prevent them from finding employment;
- To retain by his sole will the tools or assets of the worker as compensation, guarantee or other title that is not transfer of ownership;
- Make or authorize collections or compulsory subscriptions at workplaces;
- Direct work in a drunken state, or in abnormal conditions, under the influence of drugs, narcotics or other causes;
- Carry weapons inside factories or closed places of work, except with special permission to that effect; and
- Execute any act that directly or indirectly restricts the rights that this Code and other pertinent laws grant to workers.

## **8.8 Termination & Suspension of Labor Contract**

Labor contracts may be terminated entirely or suspended for a period of time in accordance with the circumstances contemplated in articles 68 to 77 of the Paraguayan Labor Code. Per Article 69 of the Paraguayan Labor Code, suspension can affect all current employment



contracts in a company or only part of them. Additionally, per Article 70 of the Paraguayan Labor Code, upon resuming work, the employer will be obliged to reinstate the same workers who provided their services in the company when the suspension was decided, according to Article 70 of the Labor Code.

### **8.8.1 Temporary Suspension of Labor Contract without Liability for the Parties**

The employment contract may be suspended under the terms contemplated in Article 71 of the Labor Code, which include the following:

1. The lack or insufficiency of raw materials or driving force to carry out the tasks, provided it is not attributable to the employer;
2. The temporary impossibility of continuing the work, as a direct and immediate consequence of the death or incapacity of the employer;
3. The lack of means of payment and the impossibility of obtaining them for the normal continuation of the work, duly justified by the employer;
4. Excess production in a given industry, in relation to the economic conditions of the company and the market situation;
5. The impossibility of continuing the work in a specific company or industry, as the exploitation is not profitable;
6. The fortuitous event or force majeure, when it has as a necessary, immediate and direct consequence the interruption of the tasks;
7. Illnesses that make it impossible for the worker to perform his / her tasks;
8. The detention, arrest or preventive detention of the worker, decreed by the competent authority;
9. The detention, arrest or imprisonment of the employer, decreed by the competent authority, when they necessarily and inevitably interrupt the normal development of work;
10. The annual cessation of work in industries that, due to the nature of the exploitation, have a periodic or discontinuous activity;

11. The worker's compliance with compulsory military service or other legal obligations, as well as their incorporation into the armed forces of the nation in cases of mobilization decreed;
12. Work accidents and occupational diseases, in the circumstances provided by law, when they only cause the worker to be temporarily incapacitated for work;
13. Strike and stoppage, except in the case that it is classified as illegal;
14. Pre and postnatal rest, leave, legal rest and vacations;
15. The exercise of a union position or the performance of representative functions in official or union organizations that prevent the worker from devoting himself to the normal performance of his duties; and
16. Any other circumstances provided for in the employment contract and internal regulations or supervening that, in the opinion of the labor authority, make it necessary to suspend or reduce work.

Regulations contemplated in articles 68 to 77 of the Paraguayan Labor Code will fully apply in the cases of temporary suspension of labor contracts.

### **8.8.2 Termination of Labor Contract**

There are 3 (three) ways in which a labor contract can be terminated.

- 1) *As a matter of law*; without the need for legal proceedings or a court decision.

According to Article 78 of the Labor Code in Paraguay, labor contracts end:

- When expressly stipulated in the contract, if they were not contrary to the law.
- With the expiration of the term or the completion of the work, in contracts concluded for a specified period or per work.
- With the death of the worker or the physical or mental incapacity of the same that makes fulfillment of the contract impossible.
- With a fortuitous event or force majeure that permanently prevents the continuation of the contract.

- With the death or disability of the employer, provided that it has as an unavoidable or forced consequence the termination of the work.
- The bankruptcy of the employer or the judicial liquidation of the organization, except in the event that the trustee, in accordance with the pertinent legal procedures, decides that the organization must continue. If it continues, the trustee can, if the circumstances require it, request the modification of the contract. The rehabilitated must contract with the same workers or union.
- The total closure of the organization, or the definitive reduction of the tasks, after prior written communication to the labor administrative authority, which will give summary participation to the workers before issuing the respective resolution.
- The resolution of the contract decreed by the competent authority.

The automatic termination of the individual contract of labor shall entail no liability for the contracting parties in the first three bullets only. The last bullets remain subject to the legal provisions and may require severance.

2) *By mutual consent of the parties* - By mutual consent, formalized in the presence of a public notary or a representative of the labor administrative authority, or the Secretary of the Labor Court of the Labor Court on duty or two witnesses to the act. There shall be no liability for either party following the termination of the individual labor contract by mutual consent, unless otherwise agreed by the parties.

3) *By the will of one of the parties*

Resignation with Cause: An employee who wishes to terminate his/her labor contract without any liability for himself/herself shall inform FO Director or Partners HQ on one of the following grounds:

- The withdrawal of the worker for justified reasons pursuant to the provisions of Article 84 of the Paraguayan Labor Code. The worker who

justifiably separates from employment or terminates the employment contract for the causes listed in article 84 will have the right to the equivalent compensation established for unjustified dismissal and for lack of notice.

- For the other causes of termination of contracts, in accordance with the provisions of common law, which are applicable to the employment contract.

*Resignation*: If an employee decides to voluntarily terminate the work relationship; he/she must notify the employer beforehand in writing. The notice must be given in accordance with the rules established in the Labor Code. No severance entitlement is owed in such cases.

*Termination with Cause*: Partners Paraguay if wishing to terminate the labor contract of an employee without liability must terminate based on one of the just causes for dismissal as outlined below:

- Dismissal of the worker by the employer with just cause pursuant to the provisions of Article 81 of the Paraguayan Labor Code.
- For the other causes of termination of contracts, in accordance with the provisions of common law, which are applicable to the employment contract.

*Termination without Cause*: If Partners Paraguay terminates the for any reason that differs from what is established by law or agreement, the Employer must pay the Employee payments established by the Labor Code that is in force, such as severance for time served and proportional labor benefits (i.e. Annual leave).

### **8.8.3 Work Certificate upon Termination**

According to Article 93 of the Paraguayan Labor Code, at the termination of any employment contract, whatever the cause that motivated it, the employer must give the worker a signed certificate stating only:

- The date of commencement and completion of the work;
- The kind of work performed; and
- Wages earned during the last pay period.

If any employee requests, the record must also state:

- The efficiency and behavior of the worker; and
- The cause or causes of termination of the contract.

## **8.9 Probation Period 60 Days**

All new employees are subject to a probationary period of 60 days in accordance with article 58 of the Paraguayan Labor Code. During this trial period he/she may terminate his/her services without notice. One week before the end of the probationary period, the candidate will be evaluated and if he/she does not meet the requirements of the position he/she may be terminated at the end of his/her probation, without notice, but he/she will be entitled to the proportional bonus and will be compensated for all time worked. Per article 59 of the Paraguayan Labor Code in the event of a new contract between the same contractors and for the same kind of work, the trial period will not apply.

## **8.10 Mandatory Notices for Termination of Labor Contract**

The employer or the employee who wishes to terminate an indefinite labor contract after the trial period has elapsed, must first give written notice to the other party as stipulated in article 87 of the Paraguayan Labor Code. If an employee terminates a labor contract for any reason listed in Article 84 of the Paraguayan Labor Code, then notice is not required. Similarly, if an employer terminates a labor contract for any reason listed in Article 81 of the Paraguayan Labor Code, then notice is not required. The required employee notices are below based on length of service, according to Article 87 section a) of the Labor Code:

| Service Period                          | Notice Period |
|-----------------------------------------|---------------|
| <b>After probation period to 1 year</b> | 30 Days       |
| <b>From 1 year to 5 years</b>           | 45 Days       |
| <b>From 5 to 10 years</b>               | 60 Days       |
| <b>10 or more years of service</b>      | 90 Days       |

The contract of employment shall remain in force throughout the notice period. The employer who has not given notice or gives it without complying with the legal requirements, is obliged to pay the worker an amount equivalent to his salary during the term of the notice. Should the worker omit said requirement, he must pay his employer an amount equal to half the salary that corresponds to the term of the notice. (Indemnity of Notice) (Article 90 of the Paraguayan Labor Code).

#### **8.10.1 Leave during Period of Notice**

In accordance with Article 89 of the Paraguayan Labor Code, during the period of notice and without reducing the salary, the worker notified of dismissal will enjoy a daily leave of two hours within the legal day or one day a week, at his discretion, so that look for a new job. At the option of the worker, he/she may make continuous use of all the time of leave that corresponds to him/her.

#### **8.11 Statutory Benefits – Indemnity of Notice – Severance Pay**

Paraguayan law requires compensation for notification and the calculation must be based on the average of the wages earned by the worker during the last six months that the contract is in force or a smaller fraction of time, if the duration of the contract is less than this period (Article 92, Paraguayan Labor Code). The calculation of the Indemnification of the Notification is contemplated in Article 91 of the Paraguayan Labor Code, and establishes that in the event of dismissal without just cause provided by the employer, with or without notice, the employer must pay the worker an indemnity equivalent to 15 daily wages for each year of service or fraction of six months.

### **8.11.1 Severance Pay - Fixed Term Contracts**

In accordance with Article 83 of the Paraguayan Labor Code, for fixed-term contracts or for a certain work or specific service, the unjustified dismissal arranged before the expiration of the term, or the completion of the work, will entitle the worker to receive compensation, to be set by the judge or court, the amount of which may not exceed the value of the wages that should have been paid by the employer until the performance of the contract.

## **8.12 Record Keeping for Personnel**

Partners Paraguay requires that all documentation related to the solicitation, hiring, review and termination of employees be retained in secure personnel folders. These folders should include all reprimands, warnings and suspensions of each employee with dates and reasons. Any required documents/provisions from the donor should also be included in the personnel record. Individual personnel folders/files should be maintained for all employees. All information provided by the employee is, and remains, confidential, and the documents in his/her file may not in any way be accessed by unauthorized personnel.

For each Partners Paraguay staff member there will be an individual file which will include:

1. The Curriculum Vitae
2. The employment contract
3. The job description
4. Any documentation indicating a salary increase
5. The Employee Evaluation Forms
6. Any document relating to a change in position, transfer or promotion
7. Any offer letters or warning letters
8. Record of paid leave or any other special leave requested and obtained
9. Timesheets
10. All documents related to:
  - a) Resignation
  - b) Revocation

c) Lay-off

d) Other causes of separation.

Partners Paraguay reserves the right to verify the authenticity of any document submitted by the Employee.

### **8.12.1 Access to Personnel Records**

The only individuals at Partners Paraguay, who have access to the personnel files, are PD and the Administrative Manager. Employees will not be allowed to access or review their personnel files, however, upon special authorization and approval from PD, the employee may review their file. This review must be done in the presence of PD.

## **9. Worktime, Workdays and Holidays**

### **9.1 Normal Daytime Work Hours**

Work hours are time when the worker is available to the employer. Rest periods are time when the worker is not available for its employer.

Normal (day) worktime is 8 hours per day or 48 hours per week.

Partners Paraguay observes the following working days and hours, in compliance with Paraguayan law:

Option A: Monday to Friday from 8 am to 5 pm, or 40 hours of work per week.

Option B: Monday to Friday from 9 am to 6 pm, or 40 hours of work per week.

Option C: Monday to Thursday from 7:30 am to 5:30 pm and Friday from 7:30 am to 11:30 am, or 40 hours per week.

Other options will be analyzed as needed and appropriate with the PD and prior approval from Partners HQ.

The PD, or his/her delegate, will inform Partners HQ on Partners Paraguay staff schedule in a semi-annual basis, unless any changes happen in between the reporting periods.



## **9.2 Overtime - Daytime Work**

Overtime refers to any hours worked beyond normal working hours listed above. All work effectively done outside of normal work hours constitutes overtime work and must be paid as such, except in the case of those in positions of leadership, trust or management, as these employees are ineligible for overtime. Overtime hours during day work are compensated with an additional 50% surcharge (Article 234, Paraguayan Labor Code). All overtime day work hours therefore are compensated at 1.50 times the day hourly salary. When the working hours must be increased due to special circumstances, this work will be considered extraordinary for the purposes of their remuneration and in no case may it exceed three hours a day, nor exceed a total of fifty-seven hours per week, with the exceptions especially provided in the Paraguayan Labor Code (Article 201, Paraguayan Labor Code). However, Partners Paraguay believes that the daily work assigned to its employees can be done as part of her/her regular schedule. Therefore, except in case of emergency or force majeure, all overtime must be approved by the supervisor. An employee requesting overtime must obtain the approval of his/her supervisor prior to overtime hours being worked. Any overtime worked without supervisor approval, will be paid, however disciplinary action will be taken including up to termination. Overtime is not considered as necessary because of the slowness of an employee in the performance of his/her duties, whether it is the improper performance of duties and/or the obligation to seek or correct errors.

## **9.3 Night Work**

Night work is considered any work between the hours of 8:00 PM and 6:00 AM (Article 195, Paraguayan Labor Code). Night work will be paid with thirty percent (30%) on the ordinary salary set for day work (Article 234, Paraguayan Labor Code). All night work hours therefore are compensated at 1.3 times the hourly salary, without prejudice to the provisions relating to the payment of work on Sundays and public holidays. These working hours will only be considered in cases in which the PD authorized them previously.

### 9.3.1 Night Work and Overtime

Overnight overtime will be paid with a surcharge of 100% (one hundred percent) on the ordinary nightly hourly wage (Article 234, Paraguayan Labor Code). Therefore, the nightly hourly overtime rate is multiplied by 2.0 of the ordinary nightly hour rate . These working hours will only be considered in cases in which the POD authorized them previously.

## 9.4 Rest and Break Time

Below is the list of rest and break times allotted to all employees at Partners Paraguay, in accordance with Paraguayan law:

- Half-Time Break - The worker shall be granted a half-time rest of a maximum of one hour between 12:00pm and 2:00pm. This rest shall not be counted within the normal hours of work.
- Break for Pregnant Women - During the period of pregnancy, the woman shall be entitled to two rest periods per day of at least half an hour each, in addition to the part-time rest for the meal. These moments of rest are paid.
- Breastfeeding Break - Mothers have the right to ninety (90) minutes per day to breastfeed, this time can be used by the mother in the way she deems appropriate and attending to the need of her child. The permit lasts six (6) months, it is computed from the first day on which the woman returns to her workplace, which can be extended up to twenty-four (24) months. For the woman to be granted the aforementioned permission for more than six months, the woman must present the medical prescription stating the child's lactation status. In the case of multiple births, said leave will be increased by 60 (sixty) more minutes per day from the second child. These moments of rest are paid.

## 9.5 Weekly Rest Day

Every worker shall be entitled to a weekly day of rest, which will normally be on Sunday. Exceptionally, an entire period of twenty-four consecutive hours of rest may be stipulated,

on a different working day and within the following week in exchange for Sunday rest, in the cases contemplated in article 213 of the Paraguayan Labor Code.

### 9.5.1 Work on Weekly Rest Day

If for any reason the employee must work on a Sunday, these hours are compensated with an additional 100% surcharge (Article 234, Paraguayan Labor Code). All Sunday hours therefore are compensated at 2.0 times the hourly salary, without prejudice to the provisions and any additional pay relating to the payment of overtime (day and night), nightwork, and public holidays.

## 9.6 Holidays

All employees at Partners Paraguay will be granted the following non-working holidays in accordance with local Paraguayan law. If an employee must work on a holiday, the employee is paid a 100% surcharge, not including the increase for night work, overtime (day or night), or payment of weekly rest (Article 234, Paraguayan Labor Code). Additional paid holidays may be granted at the discretion of Partners HQ.

Below are the National Public Holidays that are celebrated in Paraguay, some dates may vary based on year\*:

|              |                                |
|--------------|--------------------------------|
| January 1    | New Year                       |
| March 1      | Heroes Day                     |
| March-April  | Maundy Thursday                |
| March- April | Good Friday                    |
| May 1        | Labor Day                      |
| May 14       | Independence Day               |
| May 15       | Independence Day/ Mother's Day |
| June 12      | Chaco Peace                    |
| August 15    | Foundation of Asunción         |

|              |                    |
|--------------|--------------------|
| September 29 | Battle of Boquerón |
| December 8   | Virgin of Caacupé  |
| December 25  | Christmas Day      |

\*Updated list of national public holidays will be made available at the beginning of each new year.

## 10. Wages and Social Benefits

Wages and social benefits are in accordance with each employee's labor contract with Partners Paraguay.

### 10.1 Wages

All employees will be remunerated for work provided to Partners Paraguay. This wage or salary can be paid per unit of time, per piece of work or it can be fixed.

In order to receive remuneration for time worked, all employees will need to complete timesheets. Time records are legal documents and the basic source of information for payroll purposes; therefore, time worked must be reflected accurately and in accordance with [Section 10.3 Timekeeping](#). All staff is responsible for approving their timesheet to certify the accuracy of all time recorded. Each supervisor will review for accuracy and approve the timesheets after the employee submits. Remuneration to all employees will be based on the approved timesheets only. All tax and other required deductions as mandated by local law will be withheld from each paycheck, unless otherwise indicated in the employee's contract. Salaries will be paid between the 1<sup>st</sup> and the 5<sup>th</sup> of the following month.

### 10.2 Wage & Leave Advances

No wage or salary advances are allowed. Payroll is issued after the hours worked are completed and done. Furthermore, no advance leave for vacation, sick, or other leave may be taken.

### 10.3 Timekeeping

In order to ensure accurate timekeeping in the field, Partners HQ will require use of the electronic timekeeping and accrual platform called Replicon. Each employee will be

responsible for utilizing his/her account to accurately record hours worked and request all types of leave. At the end of each week, employee will be responsible for reviewing and certifying their hours worked by clicking “submit” timesheet in Replicon. Subsequently, the respective employee’s supervisor will need to log in and review and approve of the hours worked and click “submit.” All timesheets will not be considered completed until both the employee and the supervisor have certified the timesheet. Monthly, all timesheets should be printed and filed in accordance with [4.2 Filing and Records](#).

**Any leave that is not requested and recorded in Replicon correctly will be disallowed and not approved.** Failure to accurately report time and/or leave requests can result in disciplinary action, up to and including termination.

## **10.4 Pay Slips (Paystubs)**

All employees should receive a pay slip with their salary payment (regardless of method of payment) that documents the details of the payment. Pay slips should include the following information:

1. Name of employee
2. Period to which the payment applies
3. Units, rate, and extended amount of gross salary or wage payments
4. Units, rate, extended amount and description for each additional category of pay
5. Units, rate, extended amount and description for each deduction
6. Taxes withheld on behalf of the government or other taxation authority
7. Subtotaled net pay amount

Invoices are completed using information from the reviewed and approved monthly payroll timesheets.

## **10.5 Bonuses & Benefits**

Labor contracts include the following legal bonus and benefits:

### **10.5.1 13<sup>th</sup> Month Bonus - *Aguinaldo***

The 13<sup>th</sup> month bonus, or *Aguinaldo*, is an additional and compulsory salary paid by Partners Paraguay to all employees by the 31<sup>st</sup> of December of each year, regardless of the length of employment. The Bonus will not be less than one-twelfth of the wages received by the employee during the year (whether remuneration is in cash or in kind, accommodation or commission) (Article 243, Paraguayan Labor Code). If the employee did not work for the entire period, the bonus must be paid proportionately to the time worked.

### **10.5.2 Family allowance**

Every worker has the right to receive an allowance equivalent to 5% of the minimum wage for each married, extramarital or adoptive child (Article 261, Paraguayan Labor Code). The family allowance will be paid as long as the child is in the following conditions (Article 262, Paraguayan Labor Code):

- a) under the age of seventeen, and without age limitation for the totally physically or mentally disabled;
- b) under the parental authority of the worker;
- c) that his/her upbringing and education be at the expense of the beneficiary; and
- d) residing in the national territory.

The right to family allowance will be automatically extinguished with respect to each child when the conditions set forth in the previous article disappear or because the beneficiary's salary exceeds 200% of the minimum wage (Article 263, Paraguayan Labor Code). The worker will have the right to receive the family allowance from the moment he communicates in writing to the employer the children with the right to the benefit and accompanies their birth certificate (Article 264, Paraguayan Labor Code). The family allowance is not part of the salary, for the purposes of paying the 13<sup>th</sup> month bonus or for social security withholdings (Article 268, Paraguayan Labor Code).

## **10.6 Wage Deductions**

A deduction is any withholding from an employee's salary payment made by Partners Paraguay.

### 10.6.1 Salary Deductions in Paraguay

The following deductions are mandated by Paraguayan law to be withheld from all remuneration payments:

- Pensions and Health System: 25.5%

| Pensions and Health System   | Contribution % |
|------------------------------|----------------|
| Partners Paraguay (Employer) | 16.5%          |
| Employee                     | 9%             |

### 10.6.2 Other Deductions

The following deduction may only be made when there is a prior written agreement between the employee and Partners Paraguay:

- Those authorized by law;
- Reimbursement for damages to office, products, etc.;
- Payments of salaries and other remunerations made in excess.

Any salary garnishments will abide to the limitations set forth in Article 245 of the Paraguayan Labor Code.

### 10.7 Paid Leave

All paid leaves – annual leave, sick leave due to illness or work accidents, maternity leave, paternity leave, adoption leave, paid leave for Pap tests and Mammography, bereavement leave and marriage leave- will be paid in accordance with the provisions of the Paraguayan labor law and the regulations of the Social Security Institute (IPS).

All employees will be entitled to the following paid leave, in addition to all the holidays mentioned above.

### 10.7.1 Annual Leave

According to Article 218 of the Paraguayan Labor Code, every worker is entitled to a period of paid leave after each year of continuous work for the same employer. Days are accrued each year as follows, according to Article 218 of the Labor Code, modified by law 496/95:

| Service Period                     | Vacation Days |
|------------------------------------|---------------|
| <b>Up to 5 years</b>               | 12 Days       |
| <b>From 5 years to 10 years</b>    | 18 Days       |
| <b>10 or more years of service</b> | 30 Days       |

Each month, the proportional amount of annual paid leave will be accrued. For an employee with less than five years of service, the number of annual vacation days = the number of months of service x 1 day. The vacations must be provided, and the employer cannot compensate for this benefit in another manner, except upon termination. On January 1<sup>st</sup> of each year, the annual leave accrual balance will reset. The maximum carry over value is up to five (5) days of annual leave. Any days above five (5) days will be forfeited. The parties may enter into a written agreement which will allow the accumulation of annual leaves over a period not exceeding two years (Article 224, Paraguayan Labor Code).

Vacation will start on Monday or the next business day if it is a holiday. The time of the vacation must be specified by the employer, at the latest within six months from the date on which the vacation is entitled and they must be granted unofficially or at the request of the worker, without prejudice to the service and the effectiveness of the rest. The employer will notify the worker in writing, fifteen days in advance, the date on which the vacation will be granted (Article 222, Paraguayan Labor Code).

When vacations are granted after the period of enjoyment, the employer shall pay the worker double the respective remuneration, without prejudice to rest (Article 223, Paraguayan Labor Code). Standard period of enjoyment is within 6 months after the right to vacations was generated (work anniversary).



Workers must enjoy their vacation period without interruption, but due to an urgent need of the employer, they may request that they return to work. In this case, the worker does not lose his right to resume the vacation (Article 225, Paraguayan Labor Code). Non-working holidays and interruptions of work due to sickness or maternity benefiting the worker shall not be deducted from the annual leave. All annual leave requests must be tracked and recorded properly on the employee's timesheets. Annual leave must be coordinated with working associates to ensure adequate coverage in the office. All vacation leave must be requested in writing and approved by the employee's supervisor and informed to the PD and Partners HQ.

Any agreement to relinquish the right to an annual holiday with pay or to forgo such a holiday shall be void. The annual leave is not cumulative except in case of force majeure and with the express authorization of Partners HQ.

Employees are encouraged and expected to take their annual leave. Partners Paraguay will try to accommodate employee vacation plans and will be able to do this to the fullest extent if the employee and the supervisor agree on vacation plans with ample lead time.

An employee who, at the end of his/her annual leave does not show up at his/her duty without authorization by PD could be considered terminating the contract.

#### ***10.7.1.1 Annual Leave Payout upon Termination***

In case of suspension, dismissal or resignation of the employee for any reason before the expiration of his year of service, and whatever the duration of employment, the worker is entitled to payment of his/her portion of annual leave. Employees are entitled to the number of days of regular annual leave accumulated up to the date of termination (Article, 221, Paraguayan Labor Code). The calculation of this payment will be based on his/her monthly salary.

#### **10.7.2 Sick Leave**

If an employee cannot work due to illness or an accident, a medical authorization must be obtained in order for the employee to get paid for the days during which the employee could

not attend work, in accordance with the provisions of the Paraguayan labor law and the regulations of the Social Security Institute (IPS). There is no limit for sick leave in accordance with Decree Law 1860/50, approved by Law 375/56.

### **10.7.3 Maternity & Adoption Leave (Pre and Post Natal)**

According to Law N° 5508/2015, maternity leave is a paid leave of absence of 18 weeks that the law confers on a woman who has a child, and who is recognized and paid by the Instituto de Previsión Social (IPS), or if the mother is not affiliated, by the employer. In the case of multiple pregnancies, the period of maternity leave is increased by 1 (one) month for each child from the second child. Maternity leave may begin at least two weeks before the probable date of delivery as provided by Article 11 of Law N° 5508/2015. Leave for Adoption: the adoptive mother, accredited with a court ruling and the mother of the foster family, declared as such by court ruling, will have the right to access maternity leave of 18 weeks when the adopted or foster child is less than 6 (six) months, and 12 (twelve) weeks when it is greater than 6 (six) months. During the Maternity Leave, the worker will receive a subsidy from the Social Security Scheme of IPS equivalent to 100% of her remuneration at the time of delivery. The subsidy will have a maximum daily value equal to five times the value of a minimum daily wage (equivalent to approximately USD 60), according to Article 82 of the Law 427/73.

### **10.7.4 Paternity Leave**

In accordance with Article 13 of Law N° 5508/2015, the father will be entitled to fourteen (14) days of paid paternity leave. Paternity leave is paid out by employer, according to Article 82 of the Law 427/73.

### **10.7.5 Bereavement Leave**

Employees are entitled to statutory paid leave for bereavement. Three (3) days paid leave is provided to employees for the death of the spouse, children, parents, grandparents or sibling (Article 62, Paraguayan Labor Code, updated by Law N° 3384/07).

### **10.7.6 Marriage Leave**

Employees are entitled to three (3) days of paid leave for marriage (Article 62, Paraguayan Labor Code).

### **10.7.7 Paid Leave for Pap Tests and Mammography**

Female employees are entitled to one (1) day of paid leave to undergo Pap tests and Mammography each year (Law N° 3.803/09). To enjoy this benefit, the employee must prove, through the document issued by the health center, sanatorium, hospital or other health medical center, that the studies were carried out. The leave date will be established by mutual agreement between the employee and the employer.

### **10.7.8 Personal Leave**

In accordance with Article 62 of the Paraguayan Labor Code, employees are entitled to paid leave every month for employees to fulfill his personal obligations imposed by laws or governmental provisions. Up to two (2) days paid leave is provided each month, but in no case more than 15 days in the same year. Partners Paraguay and the employee may agree a flexible schedule on the schedule and working conditions to facilitate the fulfillment of the family duties mentioned within this paragraph. Any changes to the regularly approved work schedule to accommodate these employees must be agreed to in writing by both the employee and their respective supervisor, including informing Partners HQ.

## **10.8 Benefits Accruals**

Some types of benefits may be paid out directly when they are earned, such as health benefits and therefore these types of benefits should be recorded as an expense directly in the period in which they are earned and paid.

Other benefits, such as annual leave, bonuses, severance pay, etc. are earned over time and will only be paid out at a later date as defined by the policy above. In order to reflect the future commitment to pay as well as the proper allocation of the expense to projects, these types of benefits should be accrued monthly on the books. The amount that is earned each month should be calculated and recorded as an expense and, since no funds will actually be disbursed until the benefit is paid out in the future, an offsetting liability should be set up on

the balance sheet. When the benefit is eventually paid, the payment will clear the liability account.

It is the responsibility of the FO Finance Manager to analyze Partners Paraguay's staff benefits package to determine if a benefit should be accrued. The FO Finance Manager must ensure that benefits accruals are well documented, as these accruals can carry over for an extended period of time. Accrual accounts should be reconciled monthly and proof of the reconciliation sent to Partners HQ each month. The leave accruals should match the Replicon timekeeping system totals for each employee.

## **11. Employees**

### **11.1 Job Descriptions**

All permanent field staff positions should have job descriptions that are established, accurate and up to date. Job descriptions should reflect the actual work undertaken and should clearly outline the expectations of the worker employed in that position. A copy of the job description should be provided to each staff member when they commence work.

At times the employee supervisor should give feedback to their staff member based on a comparison of their work performance and the expectations in the job description. Partners recommends that this be in correlation with midterm or yearly performance reviews. Job descriptions should be used in the performance appraisal process to assess the employee's achievements and performance in accordance with the process established by the FO Director.

Should Partners Paraguay choose to alter the duties and responsibilities for a particular position, the job description should be subsequently altered. The decision to alter a job description must be made by the PD and employee's supervisor. If the resulting decision has budget implications, approval is also required from Partners HQ.

### **11.2 Performance Evaluations**

The employee's supervisor will conduct a written performance evaluation on an annual basis. Initial performance evaluations will generally be performed after two months of

employment upon the end of the probationary period. This evaluation will not be used as basis for salary increases. The evaluation will be written and will be based on available job descriptions, standards of performance, and such other factors which Partners Paraguay determines to be appropriate. Employees will have the opportunity to review, evaluate and discuss their performance as well as obtain feedback from Partners Paraguay. Standards for evaluation templates will be provide by Partners HQ and also found in [Annex I](#).

### 11.3 Salary Adjustments

Salaries for all employees are reviewed no less than 12 months after the last salary review. Adjustments to salaries are merit-based changes deriving from the performance of an individual and availability of resources. In all instances, increases are dependent on the overall financial health of the organization, **all merit-based salary adjustment recommendations must be approved by Partners HQ**. If any salary increases are approved by Partners HQ, then a Salary Increase form must be completed. A copy of the Salary Increase form can be found in [Annex I](#).

### 11.4 Salary Advances

Salary advance are not provided under any circumstances.

### 11.5 Dress Code for Personnel

The image of Partners Paraguay is reflected in the presentation of each of its employees. Partners Paraguay dress code is business professional (no jeans, flip/flops, mini-skirts, spaghetti strips, or inadequate informal) clothes from Monday to Thursday. Friday is informal and casual clothes may be worn. In the event that the employees have a field visit, it is recommended that they take into account the location and to dress accordingly. All visits to the U.S. Embassy or other government agencies require formal dress.

Each employee is expected to dress and groom appropriately for the job, presenting a clean and neat appearance. Attire should promote a businesslike, professional attitude and image in keeping with the employee's job and overall work environment. Any employee unsure about appropriate attire or grooming should consult with his or her supervisor. In setting

standards for dress and grooming, supervisors will consider exceptions for any religious or similar considerations that are requested.

If an employee's dress or grooming does not comply with established standards, it will be discussed with the employee and the employee may be sent home for the remainder of the day or to change clothes and return to work. If discussions fail to bring the desired result, the supervisor may initiate disciplinary action.

## **11.6 Communicating Absences or Delays**

If an employee is delayed arriving to work or absent, he/she must notify his/her supervisor with as much advanced notice as possible. In the case of an unforeseen delay or absence, the employee will be required to call and notify his/her superior. If the delays or absences become too frequent or occur without notification, the supervisor must address a memo to the PD documenting such incidents. If the cumulative absences or delays in work are consecutive or unjustified Partners Paraguay reserves the right to take disciplinary action, up to and including termination. If an employee is absent due to illness beyond two (2) consecutive days, he/she must provide a doctor's note or medical certificate, otherwise the employee may be considered as resigning after the third consecutive day.

The PD at Partners Paraguay may terminate the employment agreement of any employee who is absent from his/her workstation three (3) consecutive days without authorization and without just cause. In accordance with Article 81 of the Paraguayan Labor Code, any employee who is absent from work for three (3) consecutive days without notice or justification is automatically considered as resigning from his/her position. For this to be considered, the employer must first give notice to the employee to reinstate and the employee must not justify his/her absences.

An employee who wishes to be delayed or absent for a valid personal or professional reason during working hours, must first seek and obtain the authorization of his/her immediate supervisor.

## 11.7 Dispute Resolution

Regrettably, conflict can occur in any work environment. In an effort to resolve the conflict in an expedient, yet fair manner, Partners Paraguay recommends the following process for conflict or dispute resolution.

1. Speak directly to the person you are having the dispute with. Many times, disputes arise due to misunderstandings and miscommunications.
2. If speaking to the individual does not work, please speak to your supervisor, PD, or any other member of Senior Management. Then the supervisor, PD, or member of Senior Management will arrange a meeting between those involved in the dispute, to determine a resolution.
3. If the above options are unable to resolve a workplace dispute, the parties may be referred to mediation by an outside third party. The resolution of the third-party mediator is binding on both parties of the dispute.

## 11.8 Disciplinary Action

Violations of this policy may result in discipline up to and including termination of employment. Note: Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under Paraguay laws.

Partners Paraguay may decide in its sole and complete discretion to warn, discipline, suspend or discharge employees with or without progressive disciplinary actions, within the limits established by the Paraguayan Labor Code. The appropriate action will depend on the severity of the problem, the employee's past performance or the needs of the business.

Unacceptable behavior, which does not lead to immediate dismissal, may be addressed with a verbal or written warning. Written warnings will include the reasons for the supervisor's dissatisfaction and any supporting evidence. You will have an opportunity to defend your actions and rebut the opinion of your supervisor at the time the warning is issued. Disciplinary actions may also include suspensions or other measures deemed appropriate to the circumstances.

All pertinent facts will be carefully reviewed, and the employee will be given a full opportunity to explain his or her conduct before any decision is reached. The PD will give a second opinion concerning the unacceptable behavior before dismissal occurs.

## **11.9 Reasons for Disciplinary Action**

In establishing rules of conduct, Partners Paraguay has no intention of restricting the personal rights of any individual. Rather, we wish to define the guidelines that protect the rights of all employees and to ensure maximum understanding and cooperation. The following list of work rules is an illustration of the type of behavior that will not be tolerated by Partners Paraguay. This list is not all-inclusive. Any employee who violates any of the work rules listed below may be subject to disciplinary action, up to and including termination of employment. The level of disciplinary action taken will be determined at management's discretion and judged by the severity of the violation:

- Failure to comply with Partners' Paraguay procedures, policies or practices.
- Submission of false, misleading or incomplete information to obtain or keep employment.
- Failure to comply with Partners' Paraguay Proprietary Information and Confidentiality Policy.
- Theft or inappropriate removal or possession of Partners' Paraguay property.
- Falsification of timekeeping records.
- Negligence or improper conduct leading to damage of employer-owned or client-owned property.
- The use, influence, purchase or sale of illicit drugs, controlled dangerous substances (excluding lawful use of prescribed medication) or alcohol on Partners property or at a work site during working hours.
- Possession of weapons, explosives or firearms on company property.
- Committing violent acts or threats of violence.
- Committing acts of illegal discrimination or harassment.



- Insubordination, including refusal to perform assigned tasks or the performance of assigned tasks in an inappropriate manner.
- Violation of safety or health rules.
- Excessive absenteeism and/or tardiness without a proper excuse.
- Failure to meet performance standards.
- Failure to communicate and work well with others.

## **12. Risk Assessments & Contractor/Sub-recipient Monitoring**

### **12.1 Risk Assessment Guidelines & Process**

Partners Paraguay risk assessment validates that potential contractors/sub-recipients are viable, legitimate businesses and confirms that they have the financial capability and organizational resources to provide the required services. At the same time, it makes sure that contractor/ sub-recipients are not engaged in questionable ethical or legal activities.

Each time a new contract/agreement valued at \$5,000 USD or more is signed, Partners Paraguay will be required to send Partners HQ a completed Risk Assessment. The Risk Assessment template is found in [Annex I](#).

### **12.2 Frequency of Risk Assessment**

For ongoing contractor/sub-recipient monitoring activities, a follow up Risk Assessment should be completed annually in January. The completed and updated annual Risk Assessments for all contract/agreements over \$5,000 USD must be sent to Partners HQ by January 31<sup>st</sup>.

## **13. Procurement**

### **13.1 Procurement Process**

In Paraguay, a full procurement is required for all goods and services valued at \$1,000 USD or more. It is required that an appropriate competitive process be utilized and fully documented (e.g., market research for commodities/off-the shelf items; three quotes for

lower expected values; full and open competition/tender for higher expected values, etc.) At minimum, a proper procurement process requires:

- Specifications, scope of work or technical requirements for the goods or services to be purchased.
- A defined criterion for selecting a good or service provider (e.g., price, capacity to deliver on time, quality of output, past performance where applicable, etc.).
- Approval from the donor to make the purchase when required.
- Solicitations of three (3) quotes or request for proposals from a pool of qualified providers or candidates.
  - In the absence of three submitted quotes or proposals, then a clearly documented memo for justification demonstrating that efforts were taken to obtain three quotes or proposals must be prepared and submitted as part of the procurement documentation.
- A memo that clearly documents the approved bid/proposal and analysis that documents the “procurement story” behind how the preferred supplier was selected and how the evaluation criteria were utilized.

In rare circumstances a sole source transaction may be permitted. A sole source transaction is one that normally would require full procurement; however, given certain circumstance, the purchase will be approved without full and open competition. This approval can only be forthcoming in writing from the FO Admin Manager or the PD. Partners Paraguay should only consider sole source procurements in cases where there is clear evidence that the work is “so specialized” in nature that there is only one entity that could complete it. When an Employee, Representative or Affiliate proposes sole source procurement, he/she must provide clear written justification documenting the process and efforts used for determining that there are no other qualified providers.

## 14. Travel Policies and Procedures

### 14.1 Policy Overview and Applicability

The objective of this policy is to manage a travel process fully compliant with the 2 CFR 200 and Partners Paraguay's rules and regulations with guidance from U.S. Government procedures.

The financial goal of this policy is to increase accountability and efficiency of travel expenditures and to ensure compliance throughout the full process of USG regulations, 2 CFR 200, and other applicable laws, including timely clearance of all travel reports (expense reports, and per diem payments).

This policy applies to all Partners Paraguay travelers unless otherwise indicated below. Specific guidance at a country and project level may be prepared on a case-by-case basis and approved by the CFO or CEO. In no event, shall these country or project-specific policies be out of compliance with the procedures and cost/time values identified herein.

### 14.2 Requesting Travel Authorization

Staff and consultants considering a trip must discuss with their supervisor the need for the trip, activities to be conducted, funding for related costs, expectations, etc. For all travelers including staff, consultants, volunteers and others traveling under Partners Paraguay funding, a travel authorization (TA) must be prepared prior to travel and booking of flights, hotels, etc.

All field staff and local consultants are required to complete a travel authorization for all travel with a duration of four (4) hours or longer, regardless of the destination or transportation mode.

Travel authorizations will be completed using the [Salesforce](#) platform. Staff should complete the travel authorization on Salesforce and submit electronically to the appropriate supervisor. The respective supervisor will then review the proposed travel itinerary, and either approve or reject for modification electronically. Once a fully approved travel itinerary is in Salesforce, the employee can proceed with remaining travel plans and bookings.

### 14.2.1 Itinerary Changes

The appropriate supervisor should approve the traveler's itinerary changes. After receiving approval from the supervisor, travelers can contact the appropriate agency to make the necessary changes. Most importantly, it is critical that the supervisor notifies the FO Finance Department, to ensure that the per diem amount or other changes can be made as necessary. In emergency circumstances, when a supervisor is not available or after hour changes must be made immediately, it is left to the discretion of the travelers. However, they are required to notify their supervisor once the change(s) have been made. Note that the supervisor reserves the right to not approve the change. In such instance, the traveler will be responsible for any difference in cost associated with the change. Disagreements will be resolved by the CFO at Partners HQ.

### 14.3 Traveler Definitions

Partners' travel policy is broken out based on three traveler types. All travelers are expected to comply with and follow the provisions in their respective categories as follows:

- US based/HQ
  - US based/HQ are all individuals with their principle desk location at HQ.
  - This includes but is not limited to:
    - HQ Staff
    - Consultants
    - Interns
    - Telecommuting employees, etc.
- Local Field Office staff
  - Local field staff are those on payroll at Partners field offices, including the Country Director
  - Local consultant based abroad are consultants paid directly by the field office
  - All other local travelers
- US based/Other
  - Including but not limited to volunteers, board members, etc.

## **14.4 Travel Advances**

Partners Paraguay's policy is to only to make payments after goods and services have been supplied and conditions for payment met, therefore NO advances will be made for staff going on work related travel.

## **14.5 Allowable and Unallowable Expenses (Applicable to All)**

The following allowable and unallowable expenses apply to all Partners Paraguay travelers regardless of their relationship or the location of their base.

Partners Paraguay has a travel policy that provides a per diem for all Meals & Incidental Expenses (M&IE), while all other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare and train costs are reimbursed based upon actual expenses incurred. Allowable expenses are also limited to the conditions established on grants and agreements with funding agencies sponsoring the trip.

Furthermore, only allowable expenses are reimbursable under the category other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare and trains. No later than 30 days following the final day of a trip, an Expense Reimbursement Report should be prepared and submitted to the traveler's FO Finance Department. Partners Paraguay will not accept reimbursement requests made after 60 days unless approved by Senior Management at HQ. All travelers requesting an exception must make their requests in writing with a valid reason for the delay.

### **14.5.1 Lodging – Reimbursable Based**

Lodging is defined as room charges and taxes. For reimbursement purposes, a receipt must be provided. These charges cannot include room service fees, upgrade fees, mini bar tabs, entertainment fees, etc. All of these other expenditures must be paid by the traveler using their personal or per diem funds and excluded from their lodging bill.

Partners Paraguay will recognize and reimburse lodging costs based on actual expenses, but the USG ceiling rates shall be a guide to appropriate expenditures per country and must not be exceeded. Exceptions above the maximum rate can be approved by the CFO or CEO. A list of USG guidance is provided below:

- [General Services Administration](#) (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The [Department of Defense](#) (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The [State Department](#) establishes all foreign rates which are specific to major cities.

#### **14.5.2 Rental Cars – Reimbursable Based**

The cost of rental cars including rental car insurance is allowed only if the nature of the trip or the location of business to be visited is such, that use of field transport or local transportation is unavailable, impractical or unsafe, as determined by the traveler's supervisor. If deemed necessary and approved as part of the TA process, Partners Paraguay will recognize and reimburse rental car costs based on actual expenses. Prior to reimbursement, the FO Finance Department will need to check that the TA includes an explanation (specific uses) as to why a car rental was necessary.

Note, Partners Paraguay does not carry a blanket collision damage waiver policy nor is the traveler covered with liability insurance if collision with the rental vehicle were to occur. Partners Paraguay recommends the purchase of collision and liability insurance each time a car is rented.

#### **14.5.3 Use of Personal Vehicle – Reimbursable Based**

The use of a personal vehicle while on travel within Paraguay is permitted in lieu of airline transportation if approved by the supervisor. The traveler will be reimbursed for gas mileage in accordance with the IRS standard mileage rate. The current mileage reimbursement is USD \$0.575 cent per mile driven for business purposes <https://www.irs.gov/newsroom/irs-issues-standard-mileage-rates-for-2020>.

#### **14.5.4 Tolls, Parking, Etc. – Reimbursable Based**

For business travel, if renting a car, using a personal vehicle or using a Partners Paraguay's program vehicle, Partners Paraguay will reimburse based on actual costs for all tolls, parking and other costs associated to the use of the vehicle. These types of expenditures are

reimbursed based on actual charges incurred and a receipt must be provided for expenses over USD \$25.

#### **14.5.5 Airfare and Trains – Reimbursable Based**

Partners Paraguay will reimburse or purchase on behalf of all approved travelers all necessary airfare and train tickets. For reimbursement purposes, a receipt and boarding pass must be provided for all airfare and train tickets. Please note below the additional restrictions related to airfare purchases.

##### **14.5.5.1 Seat Upgrades**

Only coach class or promotional fares will be paid by Partners Paraguay. Business and first class are considered seat upgrades and must follow the below protocol; otherwise, this will not be covered by Partners Paraguay. While seat upgrades are not to be expected, there are some circumstances when the traveler could be authorized to travel Business class:

- When no space is available in coach-class accommodation and the flight must be taken;
- When use of business class is necessary to accommodate traveler disability or a special need; or
- When the cost is the same or the traveler pays for the difference in cost between coach and the upgrade.

With the exception of no-cost upgrades, or the traveler pays for the difference in cost without Partners Paraguay's funding, all seat upgrades will need to be approved in advance with the FO Director and must include a written justification as to why the upgrade is necessary.

##### **14.5.5.2 Fly America Act**

All US government-funded travel will comply with [the Fly America Act](#), which requires that all travel and shipments must be made on U.S. flag carriers to the extent services by such carriers is available. Use of a Fly America compliant carrier is required regardless of whether a foreign carrier can provide the service at a comparable or lower cost, or whether a foreign carrier is preferred due to convenience. The rules generally provide for a limited number of exceptions; however, a U.S. carrier must be used for any travel: 1) within the U.S., or 2)

between the U.S. and the last destination point that is served by a U.S. carrier for that particular routing. Exceptions to the Fly America Act can only be approved by Partners CFO at HQ. The exceptions are as listed below:

1. If a U.S. flag air carrier offers nonstop or direct service (no aircraft change) from your origin to your destination, you must use the U.S. flag air carrier service unless such use would extend your travel time, including delay at origin, by 24 hours or more.
2. If a U.S. flag air carrier does not offer nonstop or direct service (no aircraft change) between your origin and your destination, you must use a U.S. flag air carrier on every portion of the route where it provides service unless, when compared to using a foreign air carrier, such use would:
  - Increase the number of aircraft changes you must make outside of the U.S. by 2 or more; or
  - Extend your travel time by at least 6 hours or more; or
  - Require a connecting time of 4 hours or more at an overseas interchange point.

For a flight to be in compliance with the Fly America Act, the code of a U.S. flag air carrier must be noted as part of the flight number on the airline ticket, flight coupon (boarding pass), or passenger receipt. Each airline has a two-letter alpha code. From this list, you will be able to compare airline codes on the ticket with those on the list and thereby be able to ascertain whether or not the flight is on a US Flag air carrier. In order to ensure that the flight is Fly America Act compliant all travel should be booked through the designated travel agent/agency.

| Many of the U.S. flag air carriers are listed below:                                                                                                                                                                                                                       |                                                                                                                                                                                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>• AirTran Airways (FL)</li><li>• Alaska Airlines (AS)</li><li>• American Airlines (AA)</li><li>• Continental Airlines (CO)</li><li>• Delta Airlines (DL)</li><li>• Frontier Airlines (F9)</li><li>• Hawaiian Airlines (HA)</li></ul> | <ul style="list-style-type: none"><li>• JetBlue Airways (B6)</li><li>• Midwest Express (YX)</li><li>• Southwest Airlines (WN)</li><li>• Spirit Airlines (NK)</li><li>• United Airlines (UA)</li><li>• US Airways (US)</li></ul> |



#### **14.5.6 Meals & Incidentals (M&IE) – Per Diem Based**

Per diem means the amount of money that Partners Paraguay gives to the employee for an official trip out of his / her office to cover food and other expenses in accordance with current rates. Partners Paraguay includes the cost of all meals and incidentals under a flat rate per diem provided to the traveler and will NOT reimburse based on actual expenditures. Partial per diem will be provided when one or more of the meals is provided by someone other than the traveler.

For the appropriate amount of the per diem, please reference [Section 14.6 Per Diem for M&IE](#) to determine correct per diem based on the traveler type.

#### **14.5.7 All Other Miscellaneous Travel Expenses (MTE) – Reimbursable Based**

All other miscellaneous travel expenses (MTE) are additional expenses and paid as necessary and charged to the POA credit card or reimbursed based on the actual costs incurred. All MTE expenses over USD \$25 must be supported by receipts/stubs/invoices as part of the expense report in order to be reimbursed. MTE includes but is not limited to the following:

- All ground transportation fees (buses, taxis, etc.) between place of lodging or business and places off site to obtain meals, meetings, site visits, etc.
- Visas
- Room cleaning cost: Where an apartment is taken in lieu of hotel accommodations, the traveler may contract, however this must come from the incidental travel expense part of the per diem
- Immunizations and medications on travel
- Reproduction of materials
- Telephone calls and other communication costs that are reasonable and necessary for work-related communications
- Bank fees on exchanges currencies
- Purchase of clothing (in the event that baggage is lost, and clothing must be purchased in order to keep with meeting schedules)

### **14.5.8 Unallowable Expenses and Reimbursement Limitations**

Partners Paraguay will not reimburse or cover charges for the below prohibited items. Please note these lists are not inclusive and Partners Paraguay reserves the right to refuse payment of any authorized or expense deemed unallowable.

#### **14.5.8.1 Alcohol Purchases**

Alcohol purchases may not be made with Partners Paraguay's funds while on Partners Paraguay travel.

#### **14.5.8.2 Other Unallowable Expenses**

Partners Paraguay's unallowable expenses include but are not limited to:

- Additional travel insurance, travel accident insurance or trip cancellation premiums
- Non-essential upgrades or packages
- Additional expenses associated with the cost of first or business class airfare, unless it falls into the exception categories listed above
- Childcare and babysitting expenses
- Costs incurred by your failure to cancel transportation or hotel reservations
- Costs incurred by your spouse or other dependents traveling with you, unless spouse or dependents is also on a Partners assignment
- Gasoline expenses when the automobile mileage reimbursement rate is claimed
- Hair styling and haircut expenses
- Spa, nails or other treatments
- Entertainment or tour expenses, unless activity is required by Partners Paraguay trip
- Kennel/boarding expenses for pets
- Costs incurred for speeding tickets, etc. when renting or driving any vehicle for Partners Paraguay use
- Other expenses not directly related to the business purpose of the travel assignment

For a complete list of unallowable expenses for USG funds, please reference [2 CFR Part 200: Unallowable Costs \(Annex K\)](#) or [OMB Circular A-133](#), which includes any potential exceptions to the above unallowable expenses.

## 14.6 Per Diem for M&IE

Partners Paraguay has a travel policy that provides a per diem for all expenses related to meals and incidental expenses (M&IE). For the appropriate amount of per diem, please determine the traveler type. All travelers will fall into one of the three categories, as defined in [Section 14.3 Traveler Definitions](#).

### 14.6.1 M&IE Rates

All Partners Paraguay's M&IE per diem rates are based on a percentage of the government per diems allowed per city and/or country, as defined herein and below. Depending on the destination, travelers should utilize the General Service Administration rates for travel within the continental US, the Department of Defense rates for travel to Alaska, Hawaii, and other US territories, and the State Department for all foreign travel. The websites to obtain the rates are listed below:

- [General Services Administration](#) (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The [Department of Defense](#) (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The [State Department](#) establishes all foreign rates which are specific to major cities.

Per diems are driven based on the approved TA and include any travel outside of HQ or the respective Country Field Office with travel duration of four (4) hours or longer, regardless of the destination or transportation mode. Exceptions to this must be approved by the CEO or CFO.

### 14.6.2 M&IE Meal Breakdown

M&IE is intended to cover the costs of meals and incidentals during each day of work-related travel. For first and last days of travel (travel days), if the itinerary requires the traveler to start their travel day from their home-of-record (or work-related destination) before breakfast and return to their work-related destination (or home-of-record) after dinner, then the full per diem can be recorded and documented in the expense report. Specifically, if departure from home on first day of travel is before 6AM or arrival to home on last day of

travel is after 7PM, then full per diem may be applied for a travel day. Otherwise, travel day rates will be determined as defined in [Section 14.6.4 Per Diem M&IE – Local Field Office Staff](#). The travel day rate utilized should be as follows: On first day of travel, utilize the destination city; on the last day of travel, utilize the departure city. For example, if the traveler leaves home-of-record and travels to San Diego on day one, and returns back home from San Diego on day three, during both travel days, the per diem should be calculated based on the San Diego rate.

If the daily M&IE rate excludes one or more of the meals, these are to be reduced at the following rates:

- Breakfast: 16% of daily calculated M&IE rate
- Lunch: 24% of daily calculated M&IE rate
- Dinner: 40% of daily calculated M&IE rate

Note that incidentals are calculated at 20% of the total daily rate and excluded from these meal rates; i.e., the sum of incidentals and the three meals is equal to 100% of the daily M&IE. See examples in [Annex L](#).

### **14.6.3 M&IE Allowable Costs**

The M&IE portion is intended to substantially cover the costs as described below.

1. The meals allowance portion is intended to include the cost of breakfast, lunch, and dinner while on travel, and is incorporated as part of the per diem.
2. Incidental travel expense portion is intended to include but are not limited to:
  - a. Fees and tips to waiters, porters, baggage handlers, bellhops, hotel servants, dining room stewards, and similar employees
  - b. Laundry, dry cleaning, and pressing of clothing
  - c. Room cleaning tips
  - d. All other incidental travel expenses as defined by Chapter 300, Part 300-3, in the Federal Travel Regulation ([www.gsa.gov/ftr](http://www.gsa.gov/ftr)), under Per Diem Allowance.

US Based/HQ and local field office staff are not permitted to charge a corporate card for meals covered by their per diem, for themselves or any other individual receiving a Partners Paraguay's per diem. As all Partners Paraguay travelers receive some form of per diem, their costs should be paid for separately with per diem or personal funds. However, if the meal for the group is charged on a corporate card, this meal must be deducted from the daily per diem rate, at the rate defined above (in [Section 14.6.2 M&IE Meal Breakdown](#)) for the specified meal.

If US Based/HQ or local field office staff need to cover the cost for meal invitees (e.g. donors, etc.), they may use a corporate card to pay for the bill; however, they should deduct their meal and the meals of any other Partners Paraguay's per diem recipients from the bill and pay the remaining balance on the corporate card, if possible. Alternatively, they may choose to deduct the meal from the daily per diem rate received, as per the rate defined above for the specified meal. Similarly, when paying with personal credit card or cash (intending to be reimbursed), the US Based/HQ or local field office staff will only receive reimbursement for the portion of the bill that does not include meals for Partners Paraguay's per diem recipients. If for some reason the bill cannot be split, and there is no other option than to pay on a corporate card, the US Based/HQ or local field office staff member must split out the portion of the bill when coding their credit card statement between personal charges and actual business expenses. The US Based/HQ or local field office staff member will be liable to pay Partners Paraguay back for their part of the meal and for the meals of any other Partners Paraguay per diem recipient charged to their Partners Paraguay's corporate credit card if they received an advance for per diem; otherwise, this should be deducted from the expense report when requesting travel per diem after the trip.

#### **14.6.3.1 M&IE Weekend Travel**

Should a traveler remain away from home on business over a weekend, the per diem will be allowed, assuming that the traveler is required to be away from home over the weekend for business purposes.

#### **14.6.4 Per Diem M&IE – Local Field Office Staff**

This portion of the per diem policy guidelines applies to all Paraguay field office staff, local consultants and all other local travelers based outside of the US. This policy includes the Project Director.

For all full days on travel, **Paraguay Field Office staff will receive 50% for all domestic travel and 90% for all international travel**, of the government per diem rate for the particular city (or region for travel where not all specific cities are listed).\*

On the first and last day of travel, in alignment with the USG guidelines, **Paraguay Field Office Staff will receive 37.5% for all domestic travel and 67.5% for all international travel**, of the government per diem rate for the particular city (or region for travel where not all specific cities are listed). See exceptions to this in [Section 14.6.2 M&IE Meal Breakdown](#) above.

If Paraguay field office staff are taking personal vacation time either before or after the Partners business travel, they will not receive Partners per diem those days. The Paraguay field office staff will receive the first and last travel day in accordance with the guidelines listed above, as these Paraguay field office staff would have had to travel to or from the office or place of residency whether or not they were on personal travel after or prior to the trip.

#### **14.6.5 Payment of Per Diems**

Regardless of the traveler, per diems will only be paid upon the Finance Office's receipt of an approved TA. The approved TA and itinerary will be the supporting documentation and authorization for the issuance of the per diem. No receipts will be required for per diem payment, except as defined in this policy.

All per diem payments should be made within 30 days from the end date of travel. Partners Paraguay will not accept per diem payment requests made after 60 days unless approved by Partners HQ. All travelers requesting an exception must make their requests for exceptions in writing (e.g. memorandum addressed to the FO Finance Office) with a valid reason for the delay.

It is the traveler's responsibility to utilize their per diem to cover all their meals and incidentals. Unless approved by the CEO, no additional M&IE will be provided. The traveler does not need to reimburse the organization if they do not spend all their daily M&IE.

#### **14.6.5.1 Per Diem Payment for Local Field Office Staff**

Local field office staff including the Country Director and all other local travelers outside of the US will be issued their per diem upon submission of the approved travel authorization via the Replicon platform. The per diem request with the attached travel authorization as the supporting documentation will need to be submitted by each employee in Replicon, and then approved by the appropriate supervisor in Replicon. Once completed, this information will be submitted to the FO Finance Department for direct payment into the employee's bank account within 30 days.

### **14.7 Reimbursement Requests (Non-Per Diem Items)**

Allowable expenses that may be submitted for reimbursement as described above (lodging, rental cars, personal vehicles, airfare and trains) are all reasonable costs which are essential and directly related to the objectives of the grant and/or the main purpose of the trip.

#### **14.7.1 Expense Reports for Reimbursement – Local Field Office Staff**

No later than 30 days following the final day of a trip as necessary (in which purchases are not made on behalf of the traveler in advance), a reimbursement request should be prepared and submitted to the FO Finance Department. The method for requesting reimbursement for local field office staff will be done via the Replicon application. This report submitted in Replicon should include the following:

- A fully executed Travel Authorization/Travel Itinerary
- Replicon Expense Report which includes all proper documentation and copies of receipts attached for all items over USD \$25.
  - Please note that a bank or credit card statement is not sufficient documentation for a receipt. Where sufficient documentation has not been obtained, an affidavit will need to be filled out confirming the expenses were

for business purposes and that the expenses did not include any alcohol. A copy of an appropriate affidavit is found in [Annex M](#).

- Provide evidence of the exchange rate during the period of travel (a hotel or bank receipt showing a conversion of currency may be a convenient way of satisfying this requirement.)
  - The following sites are also recommended to utilize for obtaining the exchange rate:
    - Oanda: <https://www1.oanda.com/currency/converter/>

### **14.8 Personal Travel During Business Trips**

If, for personal reasons, the traveler wishes to go to places other than those on the authorized Partners Paraguay itinerary, he/she may book and must pay for those reservations and additional costs. The traveler should also notify the FO Finance Department in writing that they are booking personal travel/personal portion of the trip. If the personal travel is booked on the same ticket as the Partners Paraguay authorized trip, the traveler will be responsible for covering their personal travel within 30 days of the booking. If the flight cost is a cheaper ticket price including personal days on the beginning or end of the trip, the traveler does not need to reimburse any money. Travelers are only responsible for paying the difference of the ticket price. For example, travel dates for business ticket cost equals \$500, travel dates including a personal portion of the trip equals \$600, the staff must reimburse Partners Paraguay the \$100 difference between business ticket cost and personal portion of the trip. Appropriate documentation showing the additional costs must be kept on file for audit purposes.

### **14.9 Use of Partners Paraguay's Vehicles**

It should be noted that only authorized employees of Partners Paraguay and Partners HQ are eligible to drive company vehicles. "Vehicles" are defined as cars, trucks, motorcycles or any other motorized vehicle owned by Partners Paraguay. Partners Paraguay provides vehicles for business use to allow employees to drive on designated business assignments. All employees using company vehicles must following the below requirements:



- Any driver of Partners Paraguay vehicles must ensure that the equipment does not experience any deterioration either by his/her direct negligence or by the fault of a third party. Therefore, the employee will personally ensure the proper physical maintenance of the vehicle he/she is responsible for by checking the daily cleanliness and routine parameters, which the employee will note before each use.
- Only authorized employees of Partners Paraguay are eligible to drive company vehicles.
- All authorized drivers must be 25 years or older.
- The keys should be held by authorized employees of Partners Paraguay who are eligible to drive company vehicles. When the vehicle is not in use or on business assignment, the keys should be returned to the FO Director.
- All individuals driving Partners Paraguay's vehicles, must always have a valid driver license on them while utilizing the company vehicle.
- Company vehicles are **only** to be used for business travel.
- On occasion supervisors must check the employee's driving record to ensure that the employee's record is clean and without motorized vehicle violations.
- Employees approved to drive on company business are required to inform their supervisor of any changes that may affect either their legal or physical ability to drive.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy at all times.
- Employees should maintain the security of the vehicle and its contents, including not leaving personal items (including those of any passengers) in the vehicle at any time while unattended.
- Drivers must always drive safely and responsibly and follow all traffic regulations, including the speed limit and pay special attention to pedestrians and cyclists.
- Drivers must be mindful of the weather, and avoid driving during severe weather conditions, when feasible.

- Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is strictly prohibited.
- Employees are responsible for any driving infractions or fines as a result of their driving.
- Nonemployees and nonbusiness passengers (i.e., family and friends) are prohibited from riding in company vehicles.
- Current registration and proof of insurance must be present in vehicle.
- Vehicle doors must be locked when in motion.
- Company vehicles shall always be secured when not in transit by being locked, keys removed, and alarms activated if so equipped.
- Employees must report any accident, theft or malicious damage involving a company vehicle to the FO Director and Partners HQ, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting.
- Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Smoking is prohibited in all company vehicles.
- Seatbelts must always be worn by all passengers in the vehicle.
- Employees are not permitted, under any circumstances, to operate a company vehicle with any physical or mental impairment that causes the employee to be unable to drive safely. Furthermore, employees shall not operate any company vehicle while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive.
- The company driver is responsible for ensuring all necessary precautions are always taken to prevent damage and theft of the company vehicle and/or its contents. Whenever an employee leaves a company vehicle, the following must be done:
  - Roll up all windows

- Lock all doors
- Do not leave merchandise and equipment in open view inside a car, which may tempt a break-in. Remove all valuable items or lock them inside the trunk and out of sight when the vehicle is left unattended.
- Employees must take precautions to safeguard the vehicle and its contents. To the extent possible, employees must select off street parking, secure parking garages, or a lighted area close to a business or hotel entrance where normal police surveillance or security protection exists. If an employee is keeping a vehicle overnight in Asuncion and a secure location is not possible, then the employee must return the vehicle to Partners Paraguay's office location.

Any violation of the above requirements will result in disciplinary action, up to and including termination.

#### **14.9.1 Vehicle Driving Restrictions**

Any employee who has a "major violation" in the last five years will not be eligible to drive company vehicles, unless special authorization is given by Partners HQ. Major violations include but are not limited to:

- Driving under the influence of drugs/alcohol;
- Failure to report an accident;
- Reckless driving;
- Making a false accident report;
- Driving while license is suspended or revoked; or
- Attempting to evade a police officer.

#### **14.9.2 Vehicle Travel Restrictions**

Vehicles within cities must take into account the current insecurity situation in the country. It is recommended to check with the FO Admin Manager for the restrictions in place and adhered to U.S. Embassy restrictions for travel. For trips, the latest time of departure is: 2 pm.

### **14.9.3 Vehicle Logs**

Before each use, employees must complete a basic vehicle check before and update the log. Drivers must confirm that the following parts and components are in good working order: brakes, steering mechanism, horn, windshield wipers/washers, rear-vision mirrors, lights, and tires. Vehicles found to be in an unsafe condition may not be operated for until properly repaired.

After the basic check is completed, employees will need to report any damages and/or issues with the vehicle on the approved tracking sheet. A mileage log must be maintained for each vehicle, identifying the date and purpose of each trip and the beginning and ending odometer readings. Upon finalizing the use of the vehicle at the end of each day, the employee will need to update the log and report any damages and/or issues with the vehicle. If an employee fails to update the mileage log and perform the vehicle check, they may face disciplinary action.

### **14.9.4 Reporting Vehicle Accidents**

In case of an accident, the employee should take the following steps:

- If anyone is hurt, call for medical assistance;
- Contact the FO Director and Partners HQ immediately;
- Report the incident immediately to the local police and obtain a copy of the police report;
- Get the below information if possible:
  - Nature and extent of the damage to vehicles and other property;
  - Name and address of the legal owner of the other vehicle or vehicles, if any.
  - Name, address, driver's license number, and date of birth of the driver of the other vehicle or vehicles, if any;
  - License number, make and model of the other vehicle or vehicles, if any;
  - Name of the insurance company of any other driver or drivers, policy number and expiration date, and policy holder's name and address;
  - Time, place and date of the accident;
  - Names and addresses of anyone injured and description of injuries; and
  - Names and addresses of any passengers and other witnesses.

- Exchange vehicle identification, insurance company name and policy numbers with the other driver (if applicable);
- Do not admit negligence or liability. Give no information except as required by law enforcement officers;
- Do not attempt settlement, regardless of how minor;
- Take a photograph of the scene of accident;
- Complete the employee accident report found in [Annex G](#).

After the accident, the employee should follow legal guidelines for exchanging information with other drivers and report the accident to local police. Employees cannot guarantee payment to other parties without Partners Paraguay's authorization.

The employee will be responsible for completing the Employee Accident Report Form found in [Annex G](#). Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting. All photos, police reports, employee accident reports, and other information relating to the incident must be retained and a copy sent to Partners HQ. The FO Director will work with Partners HQ to contact the insurance provider and file claim, as necessary.

### **14.9.5 Vehicle Repairs**

For all vehicle repairs, employees must review the warranty on the vehicle when applicable. The warranty must be reviewed to ensure that the repairs are not covered under the existing warranty and/or that the repairs are done at the necessary shop which are authorized outlets for service. Additionally, the driver must check that the original parts of the vehicle are not replaced used parts, a dishonest practice quite common for radiators, batteries, lamps etc. in some places.

#### **14.9.5.1 Normal Vehicle Maintenance**

The driver will respect the normal maintenance schedule of the vehicle, usually based on the mileage of the car or the number of months of use if it occurs before. The objective is to

maintain company vehicles in a safe and operating condition by using the most economical, reliable, and up-to-date procedures and technologies available, all in accordance with the original manufacturer's recommendations. Employees who are having vehicles serviced for normal maintenance, should follow all necessary procurement standards and recommended maintenance timelines.

#### **14.9.5.2 Major Vehicle Repairs**

Major vehicle repairs are those valued at USD \$500 and above. For all major repairs, the employee will be required to obtain three (3) quotes from a pool of qualified service providers. The FO Director in coordinator with Partners HQ will review the quotes and select the best provider. The overall process and selection of the provider will be documented in accordance with the normal procurement standards in [Section 13](#). If the major repair pertains to an accident report and an insurance claim is filed, then Partners HQ in coordination with the FO Director will work with the insurance agent to cover the cost less any deductible.

#### **14.9.6 Vehicle Insurance and Registration**

Under Partners HQ's vehicle insurance policy, it provides protection to authorized drivers of company vehicles while on official business. The insurance policy covers collision, fire, theft and liability and includes a deductible. If the accident is due to driver negligence, the insurance claim may be denied, and Partners Paraguay will be responsible for all costs associated with the incident.

All Partners Paraguay's vehicle must be registered in Paraguay with the appropriate authorities. Any vehicle that is not properly registered cannot be used for business, until the registration is updated. Copies of current vehicle registration information must always be retained in the glovebox of the vehicle, and a second copy filed with the FO Finance Manager.

## Master Equipment & Supply Listing



**Project Number:**

**Preparer: (Name & Signature)**

**Date:**

**Approver: (Name & Signature)**

**Date:**

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## Annex B

### Petty Cash Count

## Partners of the Americas - Paraguay Okakuaa - DOL416 &amp; DOL419 - Petty Cash Disbursement

[illegible]



## Annex C

### Field Expenditure Report and Certification

Partners of the Americas - Paraguay Okakuaa - DOL419 & DOL421

|       |        | Month ending                                  |                | 8/31/2020    |                       |              |              |                        |         |        |     |
|-------|--------|-----------------------------------------------|----------------|--------------|-----------------------|--------------|--------------|------------------------|---------|--------|-----|
|       |        | Country                                       |                | Paraguay     |                       |              |              |                        |         |        |     |
| Payee | Grant  | *Budget Description                           | *Activity Code | Amount (PYG) | Exchange Rate Applied | Amount (USD) | *Object Code | Description of Expense | Country | Office | *Su |
|       | DOL421 | Director of Finance and Administration (100%) | PERSNL-F&A     | PYG 500.00   | 525.00                | \$0.95       | 7410         |                        | PY      | PY     |     |
|       |        |                                               |                |              |                       |              |              |                        |         |        |     |
|       |        |                                               |                |              |                       |              |              |                        |         |        |     |
|       |        |                                               |                |              |                       |              |              |                        |         |        |     |
|       |        |                                               |                |              |                       |              |              |                        |         |        |     |

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                              |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|
| <b>Name of the Country office</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | <b>Paraguay Field Office</b> |
| <b>Project Code:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | <b>DOL419 &amp; DOL421</b>   |
| <b>Project Name:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | <b>Paraguay Okakuaa</b>      |
| <b>Project Start Date:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <b>15-Dec-15</b>             |
| <b>Project End Date:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>31-May-21</b>             |
| <b>Report Date:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <b>03-Nov-19</b>             |
| <b>Total Months for the Project:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | <b>66 Months</b>             |
| <b>Remaining Months for the Project:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>19 Months</b>             |
| <b>Remaining Months for the Project:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>28.84%</b>                |
| <b>Certification of Expenses:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                              |
| 1. The undersigned hereby certifies (1) the fiscal report & attachments have been prepared from the books & records of the field office in accordance with the terms of the grant award, and to the best of my knowledge and belief, that they are correct, that the sum claimed under this award is proper and that all the costs of the field office performance (except as herewith reported in writing has been accrued or paid or will be paid currently to the award when due in the ordinary course of business.)                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                              |
| 2. That the work reflected by the costs above have been performed, that the quantities and amounts involved are consistent with the requirements of the award.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                              |
| 3. That all required approvals have been obtained and appropriate refund to Partners of the Americas will be made upon request in the event of disallowance of costs not reimbursable under the term of this award.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                              |
| 4. By signing this report, I certify that the expenses contained in the present report for month of <u>XXXXXX</u> equivalent to US dollars <u>XXXXXXX</u> were incurred by the field office, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the Department of Labor (DOL) Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by DOL, I will provide full cooperation to all the involved parties to complete such review, audit or investigation. |                              |
| <b>Name of Certifier:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                              |
| <b>Signature:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                              |
| <b>Title:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                              |
| <i>For Internal Use Only</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                              |
| <i>Partners of the Americas</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                              |
| <b>Program Manager</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                              |
| I have reviewed and confirmed that all expenses listed in the detail of disbursements report are in line with the program goals and approved work plan. I certify that all expenses are reasonable within the approved budget.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                              |
| <b>Name of Certifier:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                              |

## Bank Reconciliation

### DOL419 & DOL421 Paraguay Bank Reconciliation Bank Account: XXXXX

Month and Year:

Aug-20

Exchange Rate for the Month PYG to USD

5900.00

According to the Bank

Balance as end of: August-20

PYG 0.00

Plus:

Deposits in Transit

PYG 0.00

Less:

Check in Transit

PYG 0.00

| Number of Check | Details of Expense | Date | Amount   |
|-----------------|--------------------|------|----------|
|                 |                    |      | PYG 0.00 |
|                 |                    |      | PYG 0.00 |
|                 |                    |      | PYG 0.00 |
|                 |                    |      | PYG 0.00 |
|                 |                    |      | PYG 0.00 |
|                 |                    |      | PYG 0.00 |

Balance According to the Bank:

August-20

PYG 0.00

Exchange Rate Applied PYG to USD

5900.00

USD Balance According to the Bank end of:

August-20

\$ -

According to the Books

Balance as Beginning of:

August-20

PYG 0.00

Plus:

Deposits for the Month

PYG 0.00

Less:

Check Written in Current Month

PYG 0.00

PYG Balance According to the Books end of:

August-20

PYG 0.00

Exchange Rate Applied PYG to USD

5900.00

USD Balance According to the Books end of:

August-20

\$ -

Difference of Bank and Book Balance as end of:

August-20

\$ -

By signing this report, I certify that the expenses contained in the present report for month of \_\_\_\_\_ equivalent to US dollars \_\_\_\_\_ were incurred by the entity, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the Department of Labor (DOL) Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by DOL, I will provide full cooperation to all the involved parties to complete such review, audit or investigation.

Prepared By:

Finance-Administrative Director

Date

Approved By:

Project Director

Date

## Annex D

### Cash Flow Request

|                                                                                                                                                                    |                 |           |        |                 |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-----------|--------|-----------------|
|  <b>PARTNERS of the AMERICAS</b><br><small>Connect • Serve • Change Lives</small> |                 |           |        |                 |
| <h1>Partners of the Americas</h1>                                                                                                                                  |                 |           |        |                 |
| CASH FLOW REQUEST for                                                                                                                                              |                 |           | Aug-20 |                 |
| Office:                                                                                                                                                            | Paraguay        | Currency: | PYG    | Date Requested: |
| Program/Grant #:                                                                                                                                                   | DOL419 & DOL421 |           |        |                 |
| Reconciled Bank Balance from End of Previous Month (PYG)                                                                                                           |                 |           | PYG    | 15,754,000.00   |
| Exchange Rate of PYG to USD                                                                                                                                        |                 |           |        | 5900.00         |
| Reconciled Ending Bank Balance from Previous Month in USD                                                                                                          |                 |           | \$     | 2,670.17        |
| Amount of Last Cash Flow Request (if not in previous month bank statement, otherwise put 0)                                                                        |                 |           | \$     | -               |
| Total Projections for Current Month in USD                                                                                                                         |                 |           | \$     | -               |
| Enter Total Projections for Next Month in USD (Rounded Numbers)                                                                                                    |                 | Aug-20    | DOL419 | DOL421          |
| Direct Labor                                                                                                                                                       |                 |           | \$ -   | \$ -            |
| Living Expenses and Allowances                                                                                                                                     |                 |           | \$ -   | \$ -            |
| Equipment                                                                                                                                                          |                 |           | \$ -   | \$ -            |
| Office Expenses                                                                                                                                                    |                 |           | \$ -   | \$ -            |
| Outcome 1: Increased Participation of Children and Adolescents in Educational Opportunities                                                                        |                 |           | \$ -   | \$ -            |
| Outcome 2: Households with Increased Access to Livelihoods                                                                                                         |                 |           | \$ -   | \$ -            |
| Outcome 3: Improved Application of Labor Laws that Protect Children and Adolescents                                                                                |                 |           | \$ -   | \$ -            |
| Outcome 4: Improved Labor Law Compliance and Acceptable Working Conditions                                                                                         |                 |           | \$ -   | \$ -            |
| Monitoring, Evaluation, and Collection of Reliable Data                                                                                                            |                 |           | \$ -   | \$ -            |
| Total Projected Expenses for Next Month (USD)                                                                                                                      |                 |           | \$ -   | \$ -            |
| Necessary Funding for Next Month                                                                                                                                   |                 |           | \$     | (2,670.17)      |
| Total Cash Flow Request for DOL419                                                                                                                                 |                 |           | \$     | -               |
| Total Cash Flow Request for DOL421                                                                                                                                 |                 |           | \$     | -               |
| Prepared by:                                                                                                                                                       |                 | Date:     |        |                 |
| Title of Preparer                                                                                                                                                  |                 |           |        |                 |
| Certified By:                                                                                                                                                      |                 | Date:     |        |                 |

## Annex E

### Petty Cash Certification

Date \_\_\_\_\_

**Name of Country Director/Chief of Party**

Country Director/Chief of Party \_\_\_\_\_

Dear **Name of Country Director/Chief of Party**:

Re: CERTIFICATE OF PETTY CASH FLOAT HELD FOR PROJECT **NAME AND GRANT NUMBER**

TOTAL OF PETTY CASH FLOAT: \_\_\_\_\_

LESS TOTAL PETTY CASH VOUCHERS: \_\_\_\_\_

EQUALS TOTAL CASH ON HAND: \_\_\_\_\_

I certify that I have conducted a cash count on \_\_\_\_\_ (date) and verified Petty Cash Float in the presence of the petty cash float holder.

PETTY CASH VERIFIER: \_\_\_\_\_ Name

\_\_\_\_\_  
Signature

PETTY CASH FLOAT HOLDER: \_\_\_\_\_ Name

\_\_\_\_\_  
Signature

## Annex F

### Harassment Complaint Form

The information you provide below is considered sensitive and will be shared only with those who are considered essential to the investigation and disposition of this complaint. Do not feel limited by the space provided in this form – you are encouraged to attach additional pages if you believe it will assist in the investigation.

If you are more comfortable with verbally relaying your report, your supervisor or any member of management you've discussed your complaint with can complete the form on your behalf. However, you must sign the last page.

|                                                                              |  |
|------------------------------------------------------------------------------|--|
| <b><i>Complainant Name:</i></b>                                              |  |
| <b><i>Position:</i></b>                                                      |  |
| <b><i>Department:</i></b>                                                    |  |
| <b><i>Supervisor:</i></b>                                                    |  |
| <b><i>1. Describe the alleged harassment incident(s).</i></b>                |  |
|                                                                              |  |
| <b><i>2. Who was responsible for the alleged harassment incident(s)?</i></b> |  |
|                                                                              |  |

|                                                                                          |             |
|------------------------------------------------------------------------------------------|-------------|
| <b>3. Identify any witnesses to the alleged harassment incident(s).</b>                  |             |
| <b>4. Where did the alleged harassment incident(s) take place?</b>                       |             |
| <b>5. List the date(s) and time(s) that the alleged harassment incident(s) occurred.</b> |             |
| <b>6. Have you reported this incident to anyone else? If so, whom?</b>                   |             |
| <b>Employee Signature</b>                                                                | <b>Date</b> |
| <b>Signature of Person Completing Form (if not employee):</b>                            | <b>Date</b> |
| <b>Name of Person Completing Form (if not employee):</b>                                 |             |

Partners Paraguay is an equal opportunity employer. It is Partners Paraguay's policy that all employees have a right to work in an environment free of discrimination and harassment based on gender, race, language, color, sex, religion, age, pregnancy or maternity, political opinion, disability, sexual orientation, disability or health condition, economic situation, philosophy, national or family origin or social origin or any other basis protected by local law. Partners Paraguay's policy prohibits retaliation against any employee for complaining about discrimination or harassment.

## Annex G

### Employee Incident Report

| A. Injured Employee Data |                                                                                    |                         |                                       |
|--------------------------|------------------------------------------------------------------------------------|-------------------------|---------------------------------------|
| Employee Name:           |                                                                                    | Position:               | Full Name of Witness (If applicable): |
| Work Location:           |                                                                                    |                         |                                       |
| Date of Accident         | Time of Accident<br>A.M. <input type="checkbox"/><br>P.M. <input type="checkbox"/> | Claim Number (if known) |                                       |
| Phone:                   | Other/Cell Number:                                                                 | Email:                  |                                       |
| Supervisor               |                                                                                    |                         | Supervisor Telephone Number           |

#### Check all that Apply:

Type of Accident/Loss: ( ) Injury ( ) Vehicle Accident ( ) Illness ( ) Property Damage ( ) Fire

( ) Other-Specify: \_\_\_\_\_

Location of Occurrence: ( ) On Premises - Office ( ) Off-Premises

Nature of Injury/Illness: (Strain, Laceration, Burn, Fracture, etc.) \_\_\_\_\_

Part(s) of Body: (Back, Finger, Hand, Foot, etc.) \_\_\_\_\_

Date of 1<sup>st</sup> Medical Treatment: \_\_\_\_\_ Time \_\_AM/PM

Employee Sent: ( ) Back to Work ( ) To Doctor ( ) Home ( ) To Hospital

If applicable: Estimated Time of Disability: \_\_\_\_\_ Days

---

#### For Vehicle Accidents Only

Owner: ( ) Partners Paraguay ( ) Other (Name/Address) \_\_\_\_\_

License Plate Number: \_\_\_\_\_ Year: \_\_\_\_\_

Make/Model: \_\_\_\_\_

Brief Damage Description:

---

---

---

Repair Hours (Estimated)\_\_\_\_\_

Estimated Material Costs \$\_\_\_\_\_

---

---

**B. Accident Description**

Instructions: Obtain written and/or recorded statements from injured employee. What happened? What caused the accident? What were the contributing factors? Reconstruct the sequence of events that led to the injury. Attach additional sheets if necessary. This document becomes an official accounting of the facts surrounding the accident. When documenting the facts, include answers to the following questions:

Where did the accident happen and who was involved? Provide a full description of the surroundings of the location and the individuals involved.

What was happening at the time of the accident and why was it taking place?

What were the events leading up to the accident? Describe the sequence in order and when they took place.

What exactly caused the injury and how did it happen? What were the mechanics, equipment or tools involved?

Describe the injury or injuries incurred. What body part and what kind of injury? (Indicate if no injury occurred.)



|                                                                                                                                                                                                       |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                                                                                                                                                                       |
| If a physical injury was avoided, what could have happened to cause an injury?                                                                                                                        |
| 7. If damage occurred to employer vehicle, please describe the damage:                                                                                                                                |
| 8. If damage occurred to employer equipment, please describe the damage:                                                                                                                              |
| <b>C. Accident Findings</b>                                                                                                                                                                           |
| After review of all facts, what was the hazardous condition, unsafe work practice, or other causal factors (procedure, equipment, people, and environment) that contributed to the accident / injury? |

Employee Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Witness Signature (If Applicable): \_\_\_\_\_

Date: \_\_\_\_\_

Supervisor Signature: \_\_\_\_\_

Date: \_\_\_\_\_

## Employee Accident Investigation Report

### *To Be Conducted by PD*

For all question below please write one of the following: (Y for Yes; N for No; NA for Not Applicable)

#### I. Environmental Data

Temperature\_\_

Humidity\_\_

Weather\_\_

Wind\_\_

Visibility\_\_

Lighting\_\_

Surface (road, steps, floor, etc.).

\_\_\_\_\_

Condition (smooth, wet, slippery, etc.)

\_\_\_\_\_

Type Surface (wood, asphalt, grass, etc.)\_\_\_\_\_

\_\_\_\_\_

Describe Roadway (Curve, uphill, intersection, etc.) \_\_\_\_\_

Traffic Control Devices (Y/N):

(1) Present\_\_

(2) Visible\_\_

For ramps, stairs, steps (Y/N):

(1) Present\_\_

(2) Obstructions\_\_

#### II. Operator/Vehicle (If applicable)

A. Driver Injured\_\_\_\_\_

B. Passengers Injured \_\_\_\_\_

C. Others Injured\_\_\_\_\_

D. Vehicle Damaged\_\_\_\_\_

F. Other Vehicle Damaged\_\_\_\_\_

G. Other Property Damaged\_\_\_\_\_

H. Driver Licensed for Vehicle\_\_\_\_\_

I. Seat Belts Worn\_\_\_\_\_

J. Alcohol/Drugs Involved \_\_\_\_\_

#### III. Equipment/Training Data

A. Safety Equipment Required\_\_\_\_\_

B. Safety Equipment Available\_\_\_\_\_

C. Safety Equipment Used\_\_\_\_\_

D. Experience a Factor\_\_\_\_\_

E. Instructions Available\_\_\_\_\_

F. Instructions Written\_\_\_\_\_

G. Instructions Adequate\_\_\_\_\_

H. Alcohol/Drugs a Factor\_\_\_\_\_

I. Adequate Rest for Use\_\_\_\_\_

Have similar accident occurred before? \_\_\_\_\_

How many accidents has this employee had in the past 12 months? \_\_\_\_\_

Of the above accidents how many were preventable? \_\_\_\_\_

Once the investigator has completed the questions above and reviewed the incident report, answer the following questions:

In your opinion, what caused the accident?

A. Unsafe Procedure \_\_\_\_\_ Was this Preventable \_\_\_\_ or Non-Preventable \_\_\_\_

B. Defective Equipment \_\_\_\_\_ Was this Preventable \_\_\_\_ or Non-Preventable \_\_\_\_

C. Horseplay/Misconduct \_\_\_\_\_ Was this Preventable \_\_\_\_ or Non-Preventable \_\_\_\_

D. Unauthorized Use \_\_\_\_\_ Was this Preventable \_\_\_\_ or Non-Preventable \_\_\_\_

E. Poor Hygiene/Housekeeping \_\_\_\_\_ Was this Preventable \_\_\_\_ or Non-Preventable \_\_\_\_

F. Lack of Training/Experience \_\_\_\_\_ Was this Preventable \_\_\_\_ or Non-Preventable \_\_\_\_

| D. Corrective Action                                                                           |
|------------------------------------------------------------------------------------------------|
| What is recommended to prevent this type of accident from occurring again?                     |
| List possible factors based on descriptive narrative and information in preceding data fields: |
| List causes:                                                                                   |
| Corrective Action Taken/Planned, with dates:                                                   |

|  |
|--|
|  |
|--|

Use Additional Forms and Paper if Required

Investigated by: \_\_\_\_\_

Investigator Signature: \_\_\_\_\_

Date: \_\_\_\_\_

Reviewed by: \_\_\_\_\_

Reviewer Signature: \_\_\_\_\_

Date: \_\_\_\_\_

## Annex H

### Application for Employment

**EEO Statement:** Partners of the Americas is an equal opportunity employer and will not discriminate against any application for employment on the basis of actual or perceived race, color, religion, national origin, religion, sex (including pregnancy, childbirth, and other pregnancy-related conditions), age (18 and over), marital status (including parenthood), personal appearance, sexual orientation, gender identity or expression, family responsibilities, genetic information, disability, veteran status, matriculation, political affiliation or any other basis prohibited by law.

General Information:

Date: \_\_\_\_\_

Full Name: \_\_\_\_\_

Current Email Address: \_\_\_\_\_

Current Address: \_\_\_\_\_

Day Phone Number: \_\_\_\_\_ Evening Phone Number: \_\_\_\_\_

|                  |                |                     |                                    |
|------------------|----------------|---------------------|------------------------------------|
| _____            | _____          | _____               | <input type="checkbox"/> Full-Time |
| Position Desired | Salary Desired | Earliest Start Date | <input type="checkbox"/> Part-Time |
|                  |                |                     | <input type="checkbox"/> Intern    |

Have you ever applied to Partners of the Americas before? \_\_\_\_\_

If yes, when: \_\_\_\_\_

How did you find out about Partners of the Americas? \_\_\_\_\_

Are you legally permitted to work in this country? ☐ Yes ☐ No

Have you ever been convicted of a crime other than a minor traffic violation? ☐ Yes ☐ No

If yes, give details on a separate page and attach to the application.

Note: A criminal conviction is not an absolute bar to employment but will be considered in relation to specific job requirements.

Education / Training:

High School

City & State

Degree

Did you graduate: ☐ No ☐ Yes

College

City & State

Degree

Did you graduate: ☐ No ☐ Yes

Graduate/Trade School

City & State

Degree

Did you graduate: ☐ No ☐ Yes

Previous Experience (Start with current or most recent employer):

Firm Name

From (Month/Year) To (Month/Year)

Salary

Address (Street, City, State, Zip)

Job Title

Supervisor's Name

Phone #

Responsibilities: \_\_\_\_\_

Reason for Leaving: \_\_\_\_\_

May we contact the above employer? ☐ Yes ☐ No If no, please provide explanation.

Firm Name

From (Month/Year) To (Month/Year)

Salary

Address (Street, City, State, Zip)

Job Title

Supervisor's Name

Phone #

Responsibilities: \_\_\_\_\_

Reason for Leaving: \_\_\_\_\_

May we contact the above employer? ☐ Yes ☐ No If no, please provide explanation.

| Firm Name | From (Month/Year) | To (Month/Year) | Salary |
|-----------|-------------------|-----------------|--------|
|-----------|-------------------|-----------------|--------|

|                                    |  |  |  |
|------------------------------------|--|--|--|
| Address (Street, City, State, Zip) |  |  |  |
|------------------------------------|--|--|--|

| Job Title | Supervisor's Name | Phone # |
|-----------|-------------------|---------|
|-----------|-------------------|---------|

Responsibilities: \_\_\_\_\_

Reason for Leaving: \_\_\_\_\_

May we contact the above employer? ☐ Yes ☐ No If no, please provide explanation.

Additional Qualifications:

Please identify any additional knowledge, skills, qualifications or awards that will be helpful to us in considering your application for employment.

References:

Please provide the names of three professional references, not related to you, who can best provide pertinent information as to your character and capabilities for the position you are applying or being considered for. These individuals are generally your previous supervisors.

**Name/Title:**

**Organization:**

**Relationship:**

**Email**

**Telephone #:**

---

Applicant's Certification:

**Applicant's Certification of Truthfulness, Agreement to Background Checks and Understanding Employment**

I hereby certify that all statements made in this application and in the pre-employment process are true and correct to the best of my knowledge and belief. I understand and agree that any misrepresentation or omission of facts in my application or in the pre-employment process may result in rejection of my application or termination of my employment.

I understand an employee of Partners of the Americas may make an investigation as to my character and general reputation. I authorize all current and past employers, schools, persons and organizations having relevant information or knowledge to provide it to Partners of the Americas for the use in deciding whether or not to offer me employment. I hereby release Partners of the Americas its representatives and all such employers, schools, persons and organizations from all liability in making or responding to inquiries in connection with my application.

I understand that if an employment relationship is established my employment can be terminated at any time, with or without cause, at the option of either Partners of the Americas or myself. I further understand that nothing contained in this application or in any other oral communication or representation from Partners of the Americas or any Partners of the Americas representative made at any time constitutes a contract, guarantee, promise or any other binding obligation on Partners of the Americas.

Further, if granted a position with Partners of the Americas, I will comply with all of Partners of the America's policies and procedures, a copy of which will be provided on or before my first week of employment.

In signing this form, I certify that I understand all the questions and statements in this application.

**Acknowledged:**

---

**Signature of Applicant**

**Date**



## Annex I

### Performance Evaluation Template

# EMPLOYEE PERFORMANCE EVALUATION

|                                                                                                  |                                     |                |  |
|--------------------------------------------------------------------------------------------------|-------------------------------------|----------------|--|
| EMPLOYEE NAME                                                                                    |                                     | REVIEWER NAME  |  |
| EMPLOYEE TITLE                                                                                   |                                     | REVIEWER TITLE |  |
| DATES OF REVIEW                                                                                  | January 1, 2019 - December 31, 2019 | TODAY'S DATE   |  |
| CHARACTERISTICS                                                                                  |                                     |                |  |
| QUALITY                                                                                          | RATING SCALE                        | COMMENTS       |  |
| Works to Full Potential (not distracted & able to complete quality work)                         |                                     |                |  |
| Takes Initiative (doesn't wait to be asked to start doing his/her work)                          |                                     |                |  |
| Time Management (consistently meets deadlines with quality & accuracy)                           |                                     |                |  |
| Communication (responds promptly & accurately to requests)                                       |                                     |                |  |
| Accountability (follows policies & procedures)                                                   |                                     |                |  |
| Financial Management (accurate & responsibly handling funds)                                     |                                     |                |  |
| Coworker Relations (interacting respectfully & in good behavior with staff)                      |                                     |                |  |
| Attendance & Punctuality (is on time to work - in the field of office, and has excused absences) |                                     |                |  |
| COUNTRY DIRECTOR TECHNICAL ROLE                                                                  |                                     |                |  |
| Designed well-written country project strategies                                                 |                                     |                |  |
| Identifies local host organizations                                                              |                                     |                |  |
| Onboards field staff - review Field Office Manual & POA policies                                 |                                     |                |  |

|                                                                      |  |                           |
|----------------------------------------------------------------------|--|---------------------------|
| Ensures project Scopes of Work meet the country's project strategy   |  |                           |
| Oversees in-country travel & logistics for volunteers & staff        |  |                           |
| Produces comprehensive & well-written content to POA for reports     |  |                           |
| Establishes relationships with hosts, partners, & other stakeholders |  |                           |
| Follows POA's instructions and implements updates                    |  |                           |
| Successfully supervises field staff & keeps them accountable         |  |                           |
| Monitors & evaluates the quality & impact of volunteer assignments   |  |                           |
| <b>OVERALL SCORE</b><br>/80                                          |  |                           |
| <b>GOALS FOR NEXT PERIOD</b>                                         |  |                           |
|                                                                      |  |                           |
| <b>COMMENTS</b>                                                      |  |                           |
|                                                                      |  |                           |
| <b>EMPLOYEE SIGNATURE</b>                                            |  | <b>REVIEWER SIGNATURE</b> |

| DEFINITION OF RATINGS                                                                                                                                                       |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| EXCEPTIONAL (5): Consistently exceeds all relevant performance standards. Provides leadership, fosters teamwork, is highly productive, innovative, responsive and generates |

top quality work. Active in industry-related professional and/or community groups.

**EXCEEDS EXPECTATIONS (4):** Consistently meets and often exceeds all relevant performance standards. Shows initiative and versatility, works collaboratively, has strong technical and interpersonal skills or has achieved significant improvement in these areas.

**MEETS EXPECTATIONS (3):** Meets all relevant performance standards. Seldom exceeds or falls short of desired results or objectives. Lacks appropriate level of skills or is inexperienced/still learning the scope of the job.

**BELOW EXPECTATIONS (2):** Sometimes meets the performance standards. Seldom exceeds and often falls short of desired results. Performance has declined significantly, or employee has not sustained adequate improvement, as required since the last performance review or performance improvement plan.

**NEEDS IMPROVEMENT (1):** Consistently falls short of performance standards.

## Salary Increase Form



**PARTNERS of the AMERICAS**  
Connect • Serve • Change Lives

### 2020 Salary Increase Form

Salary increases are based on performance and available funds. The supervisor may suggest a salary increase for each employee based on the scale below. If deviating from this scale, an explanation must be included. Salary increases are ultimately at the President's discretion.

- Overall score of 4.5 and above **Exemplary** (4-5% increase)
  - Overall score of 3.5 and above **Solid Performance** (2-3% increase)
  - Overall score of 3.0 and above **Satisfactory** (1-2%)
  - Overall score of 3.0 and below\* **Needs Improvement** (0-1% increase)
- \*Supervisor must attach list of deficiencies and necessary corrective actions (performance improvement plan).

**Employee Name:**

**Effective Date of Change:** 1/1/2020

*(Retroactive to this date, if applicable)*

#### Current Salary

**2019 Annual Salary:** \$ -

**Months Worked in 2019** 0.00

#s needed for formula  
\$ -

#### Salary Increase

**\*Percentage Increase:** 0.00% \$ -

AND/OR

**Flat Increase:** \$ -

\*Based on 2019 Employee Goals & Performance Evaluation

#### Reasons for Change

**Annual Increase**

Change in Job Description

Change in Grant or Unit

Change in Position

Other (Please specify)

**Total Increase:** \$ -

**2020 Salary:** \$ -

**Per Pay Period:** \$ -

**Notes** (Attach additional memos and/or documentation, if necessary)

Supervisor Signature

Date: 01/01/2020

Vice President (if applicable)

Employee Signature

Date 01/01/2020

President Signature

Date 01/01/2020

### Sub-recipient Monitoring Tool- First Time



**PARTNERS *of the* AMERICAS**  
Connect • Serve • Change Lives

## FIRST TIME RISK ASSESSMENT

### Sub-Grantee Check List

**Name of Project & Grant Number:**  
**Fixed Obligation Grant/Contract:**  
**Cost Reimbursable Grant/Contract:**  
**Staff Name Completing Form:**  
**Date Completed:**

|           |               |             |          |
|-----------|---------------|-------------|----------|
| Yes or No | Overall Score |             |          |
| Yes or No | 0             |             |          |
|           | High Risk     | Medium Risk | Low Risk |
|           | 361-530       | 202-360     | 0-201    |

**Grading Legend:**

| Low Risk | Medium Risk | High Risk |
|----------|-------------|-----------|
| 0-3      | 4 - 6       | 7 - 10    |

| No. | Description                                                                                                                            | Review Areas/ Action Required                                                                                                                                                                                                                                                                | Answers to Questions | Rating Risk                             |
|-----|----------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|-----------------------------------------|
| 1   | Organization and Administration                                                                                                        |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 1.1 Entity Details and Registration Compliance                                                                                         |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is your organization registered in country?                                                                                            | Ex. Registration documents                                                                                                                                                                                                                                                                   |                      |                                         |
|     | 1.2 Business Structure                                                                                                                 |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is your business a LLC, Corporation, Sole-Proprietorship, etc.?                                                                        |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Who is ultimately responsible for business liabilities, debts and actions?                                                             |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 1.3 Funding                                                                                                                            |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | In your company's preceding fiscal year, did your company received 50% or more of its annual gross revenues from US federal contracts? |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Hasst the organization received during the previous year \$300,000 or more in US Government funds?                                     | Check audit reports                                                                                                                                                                                                                                                                          |                      |                                         |
|     | 1.4 Project Operations                                                                                                                 |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there an organizational chart? Is it updated?                                                                                       |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is staff aware of reporting structures?                                                                                                |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there segregation of duties ?                                                                                                       |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Does the organization have an Operations Manual?                                                                                       |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Are the key elements of an Operations Manual present?                                                                                  | 1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Phone/mobile use policy 6) Financial & HR procedures 7) Staffing requirements 8) Archiving policy 9) Procurement procedures 10) Travel Policy 11) Critical success criteria |                      |                                         |
|     | 1.5 Safety and Security Plan                                                                                                           |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there a Safety and Security Plan on file with up-to-date emergency contact information?                                             |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 1.6 Human Resources and Personnel                                                                                                      |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Are there Personnel Files? Do they have proper backup and filing systems?                                                              | Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract ? Test: Random check of each personnel file to verify documentation. How are salary distributions made? Are they properly documented?                                   |                      |                                         |
|     | 1.7 Finance                                                                                                                            |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Do financial systems effectively capture their activities?                                                                             |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Are POA project activities reported separately from other activities?                                                                  |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there a chart of accounts?                                                                                                          |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there evidence of proper financial documentation?                                                                                   | Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations                                                                                                                                                                                 |                      |                                         |
|     | Does the organization keep a separate bank account for POA/USG funds?                                                                  |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | What is the company's average monthly expenditure?                                                                                     |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 1.8 Reporting                                                                                                                          |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there adequate reporting and tracking of funds?                                                                                     |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Has the organization worked with cost share requirement before?                                                                        |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 1.9 Staffing/Human Resources                                                                                                           |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there a written HR Policy? (includes the signing document of conflict of interest)                                                  |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Is there a clear delineation of roles and responsibilities?                                                                            | Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management                                                                                                                                                       |                      |                                         |
|     | Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)?                                  | Evidence (health plan, workplace insurance, overtime register, training policy, etc.)                                                                                                                                                                                                        |                      |                                         |
|     | Are personnel contracts available in hard copy?                                                                                        |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Are consultant contracts available in hard copy?                                                                                       |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 1.10 Travel                                                                                                                            |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Does the organization have its own travel policy?                                                                                      |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     |                                                                                                                                        |                                                                                                                                                                                                                                                                                              |                      | Organization and Administration scoring |
|     |                                                                                                                                        |                                                                                                                                                                                                                                                                                              |                      | High Risk Medium Risk Low Risk          |
|     | Total score for Organization and Administration                                                                                        |                                                                                                                                                                                                                                                                                              | 0                    | 175-260 100-174 0-99                    |
| 2   | Risk Management                                                                                                                        |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 2.1 Anti-corruption / Sanctions Lists / Counter Terrorism                                                                              |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Has POA conducted a screening of the organization and people working for a project? Ex. SAM Check, OFAC Check, Compliance Check        |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | 2.2 Risk Management                                                                                                                    |                                                                                                                                                                                                                                                                                              |                      |                                         |
|     | Filing list, hard and soft copy files, compliance                                                                                      |                                                                                                                                                                                                                                                                                              |                      |                                         |

[illegible]

# Sub-recipient Monitoring Tool- Recurring Policy



**PARTNERS of the AMERICAS**

Connect • Serve • Change Lives

Recurring Policy (Subrecipient Monitoring)

## REOCCURRING RISK ASSESSMENT

### Sub-Grantee Monitoring & Evaluation Check List

Name of Project:

Fixed Obligation Grant/Contract:

Cost Reimbursable Grant/Contract:

Staff Name Completing Form:

Date Completed:

|           |               |             |          |
|-----------|---------------|-------------|----------|
| Yes or No | Overall Score |             |          |
| Yes or No | 0             |             |          |
|           | High Risk     | Medium Risk | Low Risk |
|           | 556-840       | 276-555     | 0-275    |

#### Grading Legend:

|          |             |           |
|----------|-------------|-----------|
| Low Risk | Medium Risk | High Risk |
| 0-3      | 4 - 6       | 7 - 10    |

| No.      | Description                                                                                                                                     | Review Areas/ Action Required                                                                                                                                                                                                                                                                | Action Required | Rating Risk |
|----------|-------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------------|
| <b>1</b> | <b>Organization and Administration</b>                                                                                                          |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.1 Funding</b>                                                                                                                              |                                                                                                                                                                                                                                                                                              |                 |             |
|          | In your company's preceding fiscal year, did your company received 50% or more of its annual gross revenues from US federal contracts?          |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Has the organization received during the previous year \$300,000 or more in US Government funds?                                                | Check audit reports                                                                                                                                                                                                                                                                          |                 |             |
|          | <b>1.2 Project Operations</b>                                                                                                                   |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there an organizational chart? Is it updated?                                                                                                |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is staff aware of reporting structures?                                                                                                         |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there segregation of duties?                                                                                                                 |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Does the organization have an Operations Manual?                                                                                                |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are the key elements of an Operations Manual present?                                                                                           | 1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Phone/mobile use policy 6) Financial & HR procedures 7) Staffing requirements 8) Archiving policy 9) Procurement procedures 10) Travel Policy 11) Critical success criteria |                 |             |
|          | Is there a vehicle usage log, which is maintained, reviewed and pre-determined based on a schedule? Is there an office policy on vehicle usage? |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are fixed assets labeled, marked and entered into a log/register?                                                                               |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are asset registers being updated regularly and checked at least annually?                                                                      | Spot check assets and asset register/s                                                                                                                                                                                                                                                       |                 |             |
|          | Are tags/unique identifier numbers assigned to each item?                                                                                       |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.3 Safety and Security Plan</b>                                                                                                             |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there a Safety and Security Plan on file with up-to-date emergency contact information?                                                      |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.4 Human Resources and Personnel</b>                                                                                                        |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are there Personnel Files?                                                                                                                      | Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract? Test: Random check of each personnel file to verify documentation.                                                                                                     |                 |             |
|          | Do they have proper backup and filing systems?                                                                                                  | How are salary distributions made? Are they properly documented?                                                                                                                                                                                                                             |                 |             |
|          | <b>1.5 Finance</b>                                                                                                                              |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Do financial systems effectively capture their activities?                                                                                      |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are POA project activities reported separately from other activities?                                                                           |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there a chart of accounts?                                                                                                                   |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there evidence of proper financial documentation?                                                                                            | Payment, receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations                                                                                                                                                                                 |                 |             |
|          | Does the organization keep a separate bank account for POA/USG funds?                                                                           |                                                                                                                                                                                                                                                                                              |                 |             |
|          | What is the company's average monthly expenditure?                                                                                              |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.6 Reporting</b>                                                                                                                            |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there adequate reporting and tracking of funds?                                                                                              |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is the organization reporting cost share?                                                                                                       |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are the items reported as cost share reasonable and allowable?                                                                                  |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are the items reported as cost share properly documented?                                                                                       |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.7 Project Management</b>                                                                                                                   |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are funding and staffing resource estimates sufficiently detailed and documented for use in planning and tracking the grant?                    | e.g.: Yearly budgets, Staffing plan                                                                                                                                                                                                                                                          |                 |             |
|          | Are project deliverables clearly defined and understood by project staff?                                                                       |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are target dates established for each milestone/deliverable?                                                                                    |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are project invoices being submitted to POA on time?                                                                                            | Spot check last 3 invoices                                                                                                                                                                                                                                                                   |                 |             |
|          | Is there a document retention policy?                                                                                                           |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.8 Staffing/Human Resources</b>                                                                                                             |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there a written HR Policy? (includes the signing document of conflict of interest)                                                           |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there a clear delineation of roles and responsibilities?                                                                                     | Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management                                                                                                                                                       |                 |             |
|          | Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)?                                           | Evidence (health plan, workplace insurance, overtime register, training policy, etc.)                                                                                                                                                                                                        |                 |             |
|          | Is there an up-to-date list of project employees?                                                                                               |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there an up-to-date list of project consultants?                                                                                             |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are employee salary and consultant payments in accordance with the approved budget?                                                             |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are personnel contracts available in hard copy?                                                                                                 |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are consultant contracts available in hard copy?                                                                                                |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.9 Travel</b>                                                                                                                               |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there authorized travel by POA?                                                                                                              | Check approved budget and other documentation                                                                                                                                                                                                                                                |                 |             |
|          | Does the organization have its own travel policy?                                                                                               |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are Travel Expense Reports (TERs) submitted correctly, on time, and with appropriate approvals?                                                 | Spot check                                                                                                                                                                                                                                                                                   |                 |             |
|          | Is the correct M&IE rate being used?                                                                                                            |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are itemized receipts attached to the TER?                                                                                                      |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are only allowable expenses being reimbursed?                                                                                                   |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Are Travel Advances being cleared according to the organization's policy                                                                        |                                                                                                                                                                                                                                                                                              |                 |             |
|          | <b>1.10 Conferences</b>                                                                                                                         |                                                                                                                                                                                                                                                                                              |                 |             |
|          | Is there proof that funds went to specific conferences cited in deliverables?                                                                   | Check for participants list, hotel reservations, receipts, and other documentation                                                                                                                                                                                                           |                 |             |
|          | <b>Total score for Organization and Administration</b>                                                                                          |                                                                                                                                                                                                                                                                                              |                 |             |

Organization and Administration scoring

| High Risk | Medium Risk | Low Risk |
|-----------|-------------|----------|
| 291-450   | 141-290     | 0-140    |

|                                  |            |                                                                                                                                                                                   |                                                                                                |                                 |             |
|----------------------------------|------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|---------------------------------|-------------|
| <b>2 Risk Management</b>         |            |                                                                                                                                                                                   |                                                                                                |                                 |             |
|                                  | <b>2.1</b> | <b>Anti-corruption / Sanctions Lists / Counter Terrorism</b>                                                                                                                      |                                                                                                |                                 |             |
|                                  |            | Has POA conducted a screening of the organization and people working for a project? Ex. SAM Check, OFAC Check, Compliance Check                                                   |                                                                                                |                                 |             |
|                                  | <b>2.2</b> | <b>Integrity Systems Check</b>                                                                                                                                                    |                                                                                                |                                 |             |
|                                  |            | Has the Code of Conduct been signed by appropriate staff members?                                                                                                                 | Ex. Random check 10 personnel files                                                            |                                 |             |
|                                  |            | Is the Code of Conduct readily available?                                                                                                                                         |                                                                                                |                                 |             |
|                                  | <b>2.3</b> | <b>Risk Management</b>                                                                                                                                                            |                                                                                                |                                 |             |
|                                  |            | Are local contract templates being checked regularly (at least every two years) to make sure they are in line with country workplace laws?                                        | Evidence of local legal advice                                                                 |                                 |             |
|                                  |            | Are there soft copies of Grant Agreements and Amendments on file?                                                                                                                 |                                                                                                |                                 |             |
|                                  |            | Are there hard copies of Grant Agreements and Amendments on file?                                                                                                                 | Check hard copies                                                                              |                                 |             |
|                                  |            | Is there a Project Filing System?                                                                                                                                                 | Filing list, hard and soft copy files, compliance with Sharepoint filing system                |                                 |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | Risk Management Scoring         |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | High Risk                       | Medium Risk |
|                                  |            |                                                                                                                                                                                   |                                                                                                | Low Risk                        |             |
|                                  |            | <b>Total score for Management</b>                                                                                                                                                 |                                                                                                | 0                               |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | 47-70                           | 24-46       |
|                                  |            |                                                                                                                                                                                   |                                                                                                | 0-23                            |             |
| <b>3 Finance and Procurement</b> |            |                                                                                                                                                                                   |                                                                                                |                                 |             |
|                                  | <b>3.1</b> | <b>Financial Operations</b>                                                                                                                                                       |                                                                                                |                                 |             |
|                                  |            | Are there financial management procedures?                                                                                                                                        | Spot check; evidence of FM procedures and use                                                  |                                 |             |
|                                  |            | Is the staff aware of the financial management procedures?                                                                                                                        |                                                                                                |                                 |             |
|                                  |            | Do records show correct signatures in line with delegated authority ?                                                                                                             | Spot check 10 items                                                                            |                                 |             |
|                                  |            | Are the expenses reasonable, allowable and allocable?                                                                                                                             | Spot check 10 items                                                                            |                                 |             |
|                                  |            | Are financial records being kept in hard copy?                                                                                                                                    | Sight hard copies                                                                              |                                 |             |
|                                  |            | Are financial records being kept in soft copy?                                                                                                                                    | Check SharePoint or Local Server copies                                                        |                                 |             |
|                                  |            | Is the project budget being updated regularly and with reasonable accuracy?                                                                                                       | Check latest forecast, date and signature. Should be signed off each month, even if no change. |                                 |             |
|                                  |            | Is there a budget variance greater than 10% per category?                                                                                                                         |                                                                                                |                                 |             |
|                                  |            | Are grant funds routinely requested to meet obligations?                                                                                                                          |                                                                                                |                                 |             |
|                                  | <b>3.2</b> | <b>Payroll</b>                                                                                                                                                                    |                                                                                                |                                 |             |
|                                  |            | Is payroll calculated each month?                                                                                                                                                 | By whom and how?                                                                               |                                 |             |
|                                  |            | Are all applicable taxes being withheld?                                                                                                                                          | Ex. Income tax, PAYE                                                                           |                                 |             |
|                                  |            | Are individual payroll sheets for each staff member available?                                                                                                                    |                                                                                                |                                 |             |
|                                  |            | Do payroll sheets detail other benefits and percentage allocation?                                                                                                                |                                                                                                |                                 |             |
|                                  | <b>3.3</b> | <b>Audit</b>                                                                                                                                                                      |                                                                                                |                                 |             |
|                                  |            | Are annual audits being undertaken either internally or externally?                                                                                                               | Annual audit reports                                                                           |                                 |             |
|                                  |            | Are project audits stipulated per the grant?                                                                                                                                      | Check contract/grant                                                                           |                                 |             |
|                                  |            | If yes, are they being conducted and findings submitted to POA?                                                                                                                   |                                                                                                |                                 |             |
|                                  |            | Has your company currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward? |                                                                                                |                                 |             |
|                                  | <b>3.4</b> | <b>Procurements</b>                                                                                                                                                               |                                                                                                |                                 |             |
|                                  |            | Are formal procurement policies and procedures in place and being followed?                                                                                                       |                                                                                                |                                 |             |
|                                  |            | Have all special conditions of the award been met?                                                                                                                                |                                                                                                |                                 |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | Finance and Procurement Scoring |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | High Risk                       | Medium Risk |
|                                  |            |                                                                                                                                                                                   |                                                                                                | Low Risk                        |             |
|                                  |            | <b>Total score for Finance and Procurement</b>                                                                                                                                    |                                                                                                | 0                               |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | 126-190                         | 61-125      |
|                                  |            |                                                                                                                                                                                   |                                                                                                | 0-60                            |             |
| <b>4 Technical Capacities</b>    |            |                                                                                                                                                                                   |                                                                                                |                                 |             |
|                                  | <b>4.1</b> | <b>Experience</b>                                                                                                                                                                 |                                                                                                |                                 |             |
|                                  |            | Did the company work under another organization/company?                                                                                                                          |                                                                                                |                                 |             |
|                                  |            | How much money did they spend per year in the implementation of the project (s)?                                                                                                  |                                                                                                |                                 |             |
|                                  |            | Are the activities of the organization aligned with the mission and the values of the company ?                                                                                   |                                                                                                |                                 |             |
|                                  | <b>4.2</b> | <b>Leadership</b>                                                                                                                                                                 |                                                                                                |                                 |             |
|                                  |            | During the last year has been a change in leadership?                                                                                                                             |                                                                                                |                                 |             |
|                                  | <b>4.3</b> | <b>Personnel and Consultants</b>                                                                                                                                                  |                                                                                                |                                 |             |
|                                  |            | Is the technical staff of the organization qualified and with enough experience?                                                                                                  |                                                                                                |                                 |             |
|                                  |            | What is the turnover of the technical staff?                                                                                                                                      |                                                                                                |                                 |             |
|                                  |            | Does the organization have a consultant database so they can hire a short-term consultant quickly?                                                                                |                                                                                                |                                 |             |
|                                  |            | Is the project functioning as described in application?                                                                                                                           |                                                                                                |                                 |             |
|                                  |            | Is data provided to support project "goals/outcomes"?                                                                                                                             |                                                                                                |                                 |             |
|                                  | <b>4.4</b> | <b>Reporting</b>                                                                                                                                                                  |                                                                                                |                                 |             |
|                                  |            | Have technical reports been submitted timely?                                                                                                                                     |                                                                                                |                                 |             |
|                                  |            | Have the reports been accurate? Have there been errors?                                                                                                                           |                                                                                                |                                 |             |
|                                  | <b>4.5</b> | <b>Monitoring and Evaluation</b>                                                                                                                                                  |                                                                                                |                                 |             |
|                                  |            | Does the organization have mechanisms to ensure good quality of the products?                                                                                                     |                                                                                                |                                 |             |
|                                  |            | Does the staff have access to a database with where they can access and download documents related to their work?                                                                 |                                                                                                |                                 |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | Technical Capacities Scoring    |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | High Risk                       | Medium Risk |
|                                  |            |                                                                                                                                                                                   |                                                                                                | Low Risk                        |             |
|                                  |            | <b>Total score for Technical Capacities</b>                                                                                                                                       |                                                                                                | 0                               |             |
|                                  |            |                                                                                                                                                                                   |                                                                                                | 91-130                          | 51-90       |
|                                  |            |                                                                                                                                                                                   |                                                                                                | 0-50                            |             |
|                                  |            | <b>Total Score in All Categories</b>                                                                                                                                              |                                                                                                | 0                               |             |

## Instructions



- The table at the top of the page shows how each question is score 0-10 for Risk Assessment.  
Each question will have a maximum of 10 points for high risk and 0 for low risk.
  - A score between 0-3 shows a low risk for that particular question
  - A score between 4-6 shows a Medium risk for that particular question
  - A score between 7-10 shows a high risk for that particular question
- The total sum of all the questions will determine the overall score for that section (section 1, 2, 3 or 4). The total score in each section and where that number is by analyzing the graphs/boxes (on the right) will determine the level of risk. It is important to notice that each section will have different scores (graphs/boxes on the right) depending on how many questions are being asked.

## **Annex K**

### **Unallowable Costs**

<https://www.govinfo.gov/app/details/CFR-2014-title2-vol1/CFR-2014-title2-vol1-sec200-410/summary>

## Annex L

*Examples for calculating per diem for HQ staff, note Field Staff have different percentages, however, the calculation is the same.*

Notes:

- [General Services Administration](#) (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The [Department of Defense](#) (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The [State Department](#) establishes all foreign rates which are specific to major cities.
- Meal breakdown can be calculated in the following chart (note, for travel funded by USG programs, this table MUST be used): [www.gsa.gov/travel/plan-book/per-diem-rates/mie-breakdown](http://www.gsa.gov/travel/plan-book/per-diem-rates/mie-breakdown)

i) Normal example with no exceptions

Traveler A, a staff from the HQ office, leaves for a trip to New York City on Monday morning in April. The flight is scheduled to leave at 9AM. The traveler returns back to home-of-record on Thursday by noon.

The M&IE rate is \$76, as per the GSA website.

The Partners' approved rate is 90% = \$68.4

The per diem received will be:

Monday =  $\$68.4 \times 75\% = \$51.80$

Tuesday = \$68.40

Wednesday = \$68.40

Thursday =  $\$68.4 \times 75\% = \$51.80$

Total per diem =  $\$51.80 + \$68.40 + \$68.40 + \$51.80 = \$240.40$

ii) Departing from home early; arriving home late

Traveler B, a staff from the HQ office, leaves for a trip to Bogota, Colombia on Monday morning in April. The flight is scheduled to leave at 8:00AM. In order to catch the flight, Traveler B must leave the home-of-record at 5:30 AM in order to be at the airport two hours prior to departure. The traveler returns back to home-of-record on Thursday at 10PM.

The M&IE rate is \$105, as per the State Department website.

The Partners' approved rate is 90% = \$94.50

The per diem received will be:

Monday = \$94.50 (this is a travel day; however, since Traveler B is leaving the home-of-record before 6AM, as per [Section 14.5.2 M&IE Meal Breakdown](#), full per diem is applied)

Tuesday = \$94.50

Wednesday = \$94.50

Thursday = \$94.50 (this is a travel day; however, since Traveler B is arriving to the home-of-record after 7PM, as per [Section 14.5.2 M&IE Meal Breakdown](#), full per diem is applied)

Total per diem = \$94.50 + \$94.50 + \$94.50 + \$94.50 = \$378

iii) Some meals covered by other sources

Traveler C, a staff from HQ, attends a conference in Panama City, leaving on flight on Monday at 11AM, attending the conference on Tuesday – Thursday, and returning on Friday morning, arriving to home-of-record after 9PM. During the conference, meals are provided for breakfast and lunch.

The Panama City M&IE rate is \$99, as per the State Department website.

The Partners' approved rate is 90% = \$89.10

Meal breakdown is as follows, as per [Section 14.5.2](#):

Breakfast @ the \$89.10 = \$13; Lunch = \$22; Dinner = \$36; Incidentals = \$18 (numbers rounded to nearest dollar)

The per diem received will be:

Monday = \$89.10 \* 75% = \$66.83 (Panama City is the destination city and the rate to utilize on this first travel day)

Tuesday = \$36 + \$18 = \$54 (Dinner plus incidentals)

Wednesday = \$36 + \$18 = \$54 (Dinner plus incidentals)

Thursday = \$36 + \$18 = \$54 (Dinner plus incidentals)

Friday = \$89.10 (this is a travel day; however, since Traveler C is arriving to the home-of-record after 7PM, as per [Section 14.5.2 M&IE Meal Breakdown](#), full per diem is applied; also, Panama City is the city of departure; hence, this rate is utilized)

Total per diem = \$66.83 + 54 + 54 + 54 + 89.10 = \$317.93

## Annex M



### Affidavit in lieu of Receipt

I certify the following charges are true and correct and made for the business purpose outlined below.

**Purpose/Event:**

| <u>Date</u> | <u>Description</u> | <u>Amount</u> | <u>Payment Method</u> |
|-------------|--------------------|---------------|-----------------------|
|-------------|--------------------|---------------|-----------------------|

Signed,

\_\_\_\_\_  
Name

\_\_\_\_\_  
Date

1424 K Street NW Suite 700 Washington DC 20005 202.628.3300 [www.partners.net](http://www.partners.net)



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## Acknowledgment of Receipt and Compliance to Policies

I hereby acknowledge that I have received the Paraguay Supplemental Manual for Personnel and Operations (herein referred to as "MANUAL") for Partners Paraguay. I understand that the purpose of the MANUAL is to acquaint employees with the policies and procedures of Partners Paraguay, and to act as a reference for employees. I understand that the MANUAL reflects the policies and procedures in effect this date which may be changed by Partners Paraguay.

I understand that I am bound by the provisions of this MANUAL and that it is my responsibility to read and adhere to the contents set forth in the MANUAL. Furthermore, I acknowledge these policies and procedures as conditions of employment with the Partners Paraguay. I agree to comply with all policies contained within the MANUAL and to ask my supervisor any questions that I may have about it.

Print Name: \_\_\_\_\_

Employee Signature: \_\_\_\_\_ Date: \_\_\_\_\_